



RESIDENTIAL DESIGN GUIDELINES

Durham, North Carolina

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RESIDENTIAL DESIGN GUIDELINES

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A. Introduction

1. Overview

Carolina Arbors is a high-density active adult community, designed to respect the visual character of its property, maintain community-wide architectural consistency and minimize environmental impacts. In order to preserve and enhance these principles, the Residential Design Guidelines (RDG) have been created to define the standards by which the community will remain harmonious and visually cohesive yet allow for a degree of individualism.

The Board of Directors adopted the Residential Design Guidelines (RDG) pursuant to the Declaration of Covenants, Conditions, and Restrictions (CC&R) for Carolina Arbors by Del Webb by Pulte Home Corporation, which were recorded in the Offices of the Durham County Register of Deeds. The RDG are maintained by the Architectural Review Committee (ARC) established under Article IX of the CC&R and approved by the Board of Directors.

To the extent that any government ordinance, building code or regulation requires a more restrictive standard than that found in these RDG or the CC&R, the government standards shall prevail. To the extent that the government ordinance, building code or regulation is less restrictive than the RDG, and any standard contained therein, or the CC&R, the RDG, or the CC&R shall prevail.

2. Purpose of the Residential Design Guidelines (RDG)

The RDG sets standards (Required by CC&R Article 9.1) for the design, size, location, style, structure, materials, color, mode of architecture, mode of landscaping, and relevant criteria for the construction or addition of exterior improvements/modifications. The RDG also establishes a process for review of proposed modifications and changes within Carolina Arbors.

3. Definitions and Acronyms Used in the Residential Design Guidelines (RDG)

ARC: Architectural Review Committee.

Buffer Area: On an individual lot, specific areas that were installed with shrubs and or trees, to provide privacy screening.

CC&R: Declaration of Covenants, Conditions, and Restrictions for Carolina Arbors by Del Webb by Pulte Home Corporation.

Fence: A structure intended to enclose a portion of a yard.

Front Private Area (FPA): The FPA includes all portions of the lot directly in front of the house to 1-foot from the original front service walk (sidewalk), or 10-feet from the curb if no sidewalk exists.

Front Yard: The Front Yard includes all portions of the lot bounded by the side property lines, the front property line, and the front of the home extended to the side property lines.

Hardscaping: Includes constructed patios and walkways, landscape/sitting walls, edging, and architectural features.

HOA: Carolina Arbors by Del Webb Homeowners Association, Inc.

Landscaping: Live and growing vegetation or mulch bed that may contain such vegetation (e.g. grass, shrubs, ground cover, trees).

MRF: Modification Request Form.

OCA: Our Carolina Arbors website (www.ourcarolinaarbors.com).

Plat plan: A plat is a map showing the divisions of a parcel of land into individual plot plans.

Plot plan: Official document issued for an individual property with all setbacks, easements and impervious surface data. If you do not have the necessary plot plan, one might be obtained by sending a request with your address in an email to planning@durhamnc.gov or by calling the planning group at 919-560-4137.

Railing: A handrail installed on a front porch or patio for safety.

Rear Private Area (RPA): The RPA includes all portions of the lot directly behind the house to the rear property line.

Rear Yard: Rear Yard includes all portions of the lot bounded by the side property lines, the rear property line, and the rear of the home extended to the side property lines.

Side Yard: Side Yard includes those portions of the lot bounded by the side foundation walls of the home, the Front and Rear Yard Areas, and the side lot property lines.

Structure: Anything built or installed above ground including home additions, patios, lanais, pergolas, etc.

View Corridor: Open lines of sight adjacent to, between, behind, or in front of homes in Carolina Arbors, which maintains established views from a given location against building development/landscape obstruction.

4. Architectural Review Committee Process

The architectural review process has been established to maintain the integrity of the architectural and design character of Carolina Arbors. To this end, the ARC will review all proposed additions, improvements, or alterations and all landscaping, on homes for conformity with the RDG. ARC is granted authority by CC&R Article 9.2.

Article IV of the CC&R sets forth provisions with respect to the review process, including possible delegation of certain review functions to the ARC.

The ARC reviews and approves modification requests. Violations of the RDG are handled by the management company under direction of the Board of Directors and with input from the ARC. Objections to the ARC decisions may be appealed to the Board of Directors.

- (a) The management company will forward copies of all submittals to the chairperson and members of the ARC.
- (b) Site inspections by the management company may be conducted for all non-Fast Track modification requests.
- (c) Comments received in writing, by adjacent and/or other impacted property owners will be reviewed and taken into consideration.
- (d) The ARC will make a determination.
- (e) Construction should begin at the indicated start date (but no sooner than receiving official notification of approval) or within 120 days after the date of the written approval by the ARC. Work must be completed within 90 days after construction begins, unless an extension is requested in writing and granted. Approval for projects that are not begun as specified above will lapse, and the applicant must resubmit the proposal.

5. How to Best Use the Residential Design Guidelines (RDG)

The RDG has been redesigned with a more intuitive index. This document is “inclusive” in nature, meaning that if a particular modification is allowable, it will be specified, and all requirements will be described. If you cannot find the subject listed, or the guideline does not include your proposed modification, it most likely is not approvable by ARC. In a very few instances, the statement “...on a case by case basis...” will describe a modification that can be allowed, but in specific situations only. In situations where the guidelines do not address certain situations, an appeal to the Board may be required.

When determining if a project can be approved, first read the “Introduction” and “General Information” for limits that apply to all modification requests. It will also be helpful to read the “Definitions and Acronyms” section for a complete understanding of terms used within the RDG. Also included will be “Items with no approval required” or “Items that qualify for Fast Track approval”. Next, determine if your modification falls within the “Modifications to House and Structure” section or if it falls within the “Landscaping and Hardscaping Modifications” section and then view the individual categories under the appropriate heading.

Lastly, some especially important cautions:

- (a) Do not take a contractor’s word as approval. Too often a contractor says “we do this all the time so it’s OK”. Remember, a Modification Request Form (MRF) can ONLY

be executed by the homeowner, not a contractor because the homeowner is the one responsible for guideline violations. Your contractor has no liability to the HOA.

- (b) Do not depend on government regulations only. The RDG in some instances are more restrictive than city or county regulations (safety, privacy, or aesthetic concerns are a few examples).
- (c) Do not base expectations on what has been modified on other homes or properties. Each situation may be unique such as easement restrictions, impermeable surface allowances or perhaps what has been modified on other homes was never approved and therefore remains subject to violation.

In conclusion, always file a Modification Request Form (MRF) before beginning any project.

6. General Notes

The architectural design of any and all additions, alterations, and renovations to the exterior of an existing home shall strictly conform to the design of the original home in style, detailing, materials, and color. Any such addition, alteration or renovation shall be made only after application to, and written approval by, the ARC. Homeowners are responsible for all cleanup of any improvement project. All debris, sod, soil, etc. shall be removed from the lot and hauled to the proper waste sites. If the project causes damage to any neighboring property, public or private, the Homeowner is responsible for any necessary repairs. Homeowners are to maintain the existing grading and drainage in place at time of closing, unless a Modification Request has been approved.

7. Setbacks and Easements

(a) Building Setbacks

The building setbacks described below are applicable to all homes in Carolina Arbors and recognized by the ARC. (Setbacks & Easements are specified by Durham Unified Development Ordinance Section 6.12.3.b.7)

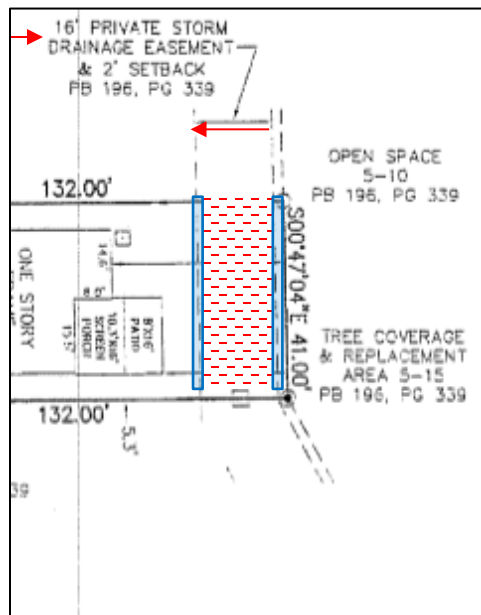
Notwithstanding any other provision of law, all building setbacks must meet these requirements, except for such buildings that are built by the developer or the HOA pursuant to approvals obtained from the Durham County. The building setback requirements apply, as noted. The building setback requirements generally define the Private Area, except as noted in Sections D.1(b)13) and D.1(b)14) of the Residential Design Guidelines:

- | | |
|----------------|-----------------|
| 1) Front Yard: | 18-Inch Minimum |
| 2) Rear Yards: | 5-Foot Minimum |
| 3) Side Yard | 5-Foot Minimum |

(b) Drainage Easements

Drainage easements are shown on recorded plats and depicted on homeowner's plot plan as "16-FOOT PRIVATE STORM DRAINAGE EASEMENT". Drainage easements are specific to each property and some properties will not have a drainage easement. Nothing may be planted or placed in the drainage easement. *Note:* The Board may consider minor encroachments into the drainage easement via the appeals process however this will require the homeowner to execute a hold harmless deed restriction.

The drainage easement is bordered by a 2-foot drainage setback on each side. Landscaping and fences may be placed in the 2-foot drainage setback. No structures such as a patio or pergola may be placed in the drainage setback.



8. Scope of the Architectural Review Committee (ARC)

The HOA and its applicable committees are charged with upholding the guidelines listed here within this document. Approval for a building modification by the HOA and/or its committees does not preclude the property owner from the responsibility of obtaining all necessary permits and permissions to perform a building modification. (CC&R Section 9.6.g says the homeowner is responsible for permits and compliance with codes, not the ARC or the HOA).

Furthermore, an 'architectural approval' does not mean that the modification meets local building codes and jurisdiction. The local municipality will ensure the modification meets state and local codes and ordinances. Due to the ARC's experience with additions and the building process, the ARC should advise the homeowner of any potential concerns with a request for modification but cannot deny a request based solely on an assumption of building code or ordinance compliance. When a concern for 'constructability' arises

the HOA and/or its committees may request an approved building permit from the municipality before proceeding with their project.

All modifications to homes shall be built within the building setback lines originally established for Carolina Arbors or as modified by Del Webb with the requisite approval of Durham County regardless of any more lenient requirements of any local governmental authority.

All materials used in maintenance, repair, additions and alterations shall match those used by Del Webb as to color, composition, type, and method of attachment. The ARC may allow substitute materials if such materials are deemed by the ARC in its sole discretion to be compatible with the theme of the community.

9. Maintenance/Replacement/Repair Policy

All homes require upkeep; things wear out, break, or need replacement. If you need to perform any upkeep on your home and are replacing with an identical item or product installed in the same manner and location as the original with no visible cosmetic changes, no approval is required. Examples would be:

- (a) Repainting the home: If the same color, color scheme and sheen of paint is used, no approval is required. If you are changing colors or sheen, you must follow the requirements herein.
- (b) Windows: Glass does get broken. Replacing a glass panel or window does not require approval, as long as the finished product looks the same as original installed windows at time of build.

If you have any doubt, file a Modification Request Form (MRF).

10. Changes and Amendments to the Residential Design Guidelines (RDG)

The RDG may be amended as follows:

- (a) Changes to these RDG may be proposed by the Board of Directors of the Homeowner's Association and/or the ARC. Additionally, any homeowner may submit to the Board of Directors proposed changes to the RDG for review and consideration (refer to HOA policy #7: *Changing the residential guidelines or rules and regulations*).
- (b) The Board of Directors may forward homeowners proposed changes to the ARC prior to being considered by the Board.
- (c) Any ARC recommendation to amend the RDG shall be approved by two-thirds of the Committee members and be forwarded to the Board of Directors for consideration.

- (d) If the Board of Directors approves the proposed amendment, it shall become an amendment to the RDG. Such amendment shall be promptly posted on the community website (OCA) and made available as an update to the RDG.
- (e) All amendments shall become effective upon adoption by the Board of Directors. Such amendments shall not be retroactive to previous work or approved work in progress.
- (f) In no way shall any amendment to the Carolina Arbors RDG change, alter or modify any provision of the CC&R or any Supplemental Declaration or the Articles or Bylaws of the Homeowner's Association.
- (g) The ARC and Board of Directors will review proposed changes at least once per year.

B. Submitting for Approval

1. Responsibilities of Homeowners *before* Modification Installation

- (a) Homeowners are required to submit plans to, and receive written approval from, the ARC prior to application to the City of Durham for permit (if applicable) and prior to commencing work on:
 - 1) Additions, alterations, or modifications to the exterior of existing homes
 - 2) Exterior painting (change of colors)
 - 3) Landscaping and hardscaping
 - 4) Spas, Jacuzzis, walls and fences
 - 5) Any exception to or deviation from the RDG
 - 6) Any concrete work, ancillary equipment, signage, and any and all other such on-site improvements
- (b) However, it shall be the responsibility of all homeowners to comply with all standards and guidelines identified in the RDG, as well as all requirements of the CC&R.
- (c) Homeowners should allow enough time for processing and approval by the ARC in planning for construction or installation.

2. Planning and Preparation of Submissions

The homeowner shall submit a Modification Request Form (MRF) (see Appendix A) showing the plans for the proposed improvement as follows:

- (a) Using the RDG, determine if a submittal is required. [Note: All modifications require an application, unless otherwise noted in this document that approval is not required.] If yes, continue.
- (b) Can it be Fast Tracked? If no, continue. If yes, complete Fast Track form. See section B.5 Fast Track Process and Form below.
- (c) Prepare the MRF, and attach any drawings, sketches and all required documents for the ARC's review. A complete submittal must FULLY describe/depict the requested modification.
- (d) Sign and date the MRF.

- (e) Present the complete MRF to all adjacent and/or other property owners who may be visually or otherwise impacted by the change, and obtain their signatures. These signatures represent the acknowledgement of the affected homeowners. Signatures of neighbors does not signify agreement or approval of the proposed modification. If a neighbor refuses to sign the request, it must be noted on the application form. A neighbor's refusal to sign does not mean the application will be denied. If a neighbor objects to the requested addition or change, they must raise their concerns in writing to the HOA. Neighbors must list their residence's address.
- (f) After completing the above steps, submit the MRF to the HOA. The management company will perform an initial review of the submittal for completeness and legibility. Incomplete or illegible submittals will be returned to the homeowner.

3. Supporting Materials to the Modification Request Form (MRF)

- (a) Homeowner's Contractor:

The company that is installing and/or building the requested modification. NOTE: Homeowner should obtain a Certificate of Insurance which is proof that the contractor is covered by insurance. If contractor fails to obtain coverage, the homeowner may be responsible for any liability incurred by the contractor.

- (b) Design Plan/Construction Plans:

Design/construction plans must include all required details to complete the proposal, i.e., foundation, framing, and other details with required dimensions.

- (c) Elevation Drawing:

A side view that will show height, topography of land, and visual image of the change.

- (d) Material List:

The description of the materials which make up the modification requested. Should include a photograph or brochure showing the item(s).

- (e) Picture:

Photo of the existing area to be modified.

- (f) Plot Plan:

Plot Plan is a top-down drawing showing location of existing structures, easements, property boundaries relation to adjoining properties, and location of proposed changes. It is the recorded drawing of each house on its lot. Legends should be used

to help identify items on Plot Plan. The Plot Plan for your property should have been provided to you at closing and should look something like this:



If you do not have the necessary plot plan, one might be obtained by sending a request with your address in an email to planning@durhamnc.gov or by calling the planning group at 919-560-4137.

4. Items with No Approval Required

- (a) Approvable plants and shrubs under 3-feet in height at maturity in a previously approved mulched area.
- (b) Portable barbecues/gas grills, portable heaters, and portable fire pit tables not requiring an additional utility (e.g., gas line) connection.
- (c) Normal maintenance items such as home repainting (keeping the same color selection and paint sheen), and mailboxes and post (same style, shape, color, and size).

5. Fast Track Process and Form

Items that qualify for Fast Track will be approved upon proper and complete submission. No signatures are required with Fast Track items.

All FastTrack applications should be submitted online on community website (OCA) under "[Documents](#) > "[Architecture Modification Form](#)" > "[Fast Track Forms](#)"

6. Items that Qualify for Fast Track Approval

- (a) House Exterior
 - 1) Attic Fans (Section C.8(a))

- 2) Flags (Section C.9)
 - 3) Motion Detection Lighting (Section C.13)
 - 4) Satellite Dish (Section C.19)
 - 5) Roof Shingles (Section C.18)
 - 6) Security Cameras (Section C.20)
 - 7) Solar Tubes (Section C.22(b))
 - 8) Storm Doors (Section C.7(c))
 - 9) Exterior Light Fixtures (Garage) [if it matches existing light]
 - 10) Repaint House (Section C.16.(c)) [if using the same color scheme as existing]
 - 11) Repaint Shutters (Section C.16.(d))
- (b) Landscaping and Grounds
- 1) BBQ Natural Gas Connection (Section D.5)
 - 2) Replacement of Front/Rear Yard Tree (Section D.27)
 - 3) Hoses and Hose Reels (Section D.16)
 - 4) Invisible Fencing (Section D.10(d))
 - 5) Irrigation Systems (Section D.17)
 - 6) Landscape Edging (Section D.9(a))
 - 7) Solar & Low Voltage Pathway Lighting (Section D.19(b))

7. Prohibited Modifications

Pursuant to the CC&R and/or these RDG, the following are examples of modifications that are prohibited from use in Carolina Arbors:

- (a) Above ground tanks
- (b) Accessory buildings, including gazebos, greenhouses and guest houses
- (c) Artificial vegetation
- (d) Asphalt as a paving material

- (e) Bird or squirrel houses exceeding the roof eave in height
- (f) Children's play equipment
- (g) Clothes lines or clothes poles
- (h) Detached garages
- (i) Driveway width expansion
- (j) Permanent sports goals or similar devices
- (k) Permanent swimming pool
- (l) Security Doors
- (m) Stand-alone flagpoles
- (n) Storage buildings or sheds
- (o) Tents of a permanent nature
- (p) Free standing dog run

C. Modifications to House Exterior and Additions

1. General

All modifications to the house exterior and grounds will require approval unless this document specifically states that approval is not required. The following are guidelines and criteria as to what modifications may be allowed. All intended structures/modifications must receive written approval by the ARC before installation will be permitted.

2. Accessibility Ramps

Ramps to provide improved accessibility for wheelchairs and other mobility aids to traverse doorway thresholds are permitted to be installed outside exterior doors. If the ramp is painted, stained or otherwise colored, it is encouraged to be black, white, muted earth tones, or be similar to the color and tone of the house, trim, or door.

The slope of the ramp is recommended to be within ADA guidelines and its recommendations for slope ratio. Ramps that significantly deviate from ADA guidelines and recommendations can be denied.

[Supporting materials to MRF: Picture or Brochure, Material list, Building Plan \(if constructed\), and Contractor.](#)

3. Additions to House

All homes in Carolina Arbors have floor plans that have options for additions such as adding a screened porch, a lanai (with or without windows) or a sunroom which has windows, insulation, and a climate-controlled environment. See document “*Home Model Exterior Options*” which can be found in OCA documents under Architectural Review.

The addition must comply with the following:

- (a) The roof pitch must be the same as the roof originally constructed or similar to the optional structures offered by Del Webb. The shingles must match in texture and color (Weathered Wood color) (see Section C.18: Roof Shingle Replacement (Fast Track)). Roof construction must be similar to other Carolina Arbors roofs. No alterations or improvements shall have a flat roof or be constructed with a roof pitch that varies from the roof originally constructed in the community.
- (b) Siding should match the color and type of the main house.
- (c) Soffits, gutters and downspouts must match the color and style used by Del Webb in the construction of the main house. Size of gutter and downspouts may vary to manage water flow.
- (d) Any windows and doors should match the colors and styles as outlined in the RDG. All hardware should be consistent with hardware colors and materials originally

installed in the community. Transoms can be used above doors and windows in additions. Windows are also subject to restrictions covered elsewhere in these guidelines.

- (e) The modification does not exceed the maximum square footage of all options as designed and offered by Del Webb for that model house. This recognizes that the original community plan maximizes the size of the homes for impervious surfaces, drainage, view corridors and esthetics given high-density zoning. See document -- *"Home Model Exterior Options"* for addition options for each model home which can be found in OCA documents under Architectural Review.
- (f) The modification does not exceed the total impervious surface allowed for this lot (see plot plan).
- (g) The structural addition must be within the RPA and be contiguous with the original home, or foundation of the rear portion of the house.
- (h) The addition of any permanent walls does not redefine the original RPA and therefore does not obstruct existing view corridors.
- (i) Any egress hardscape or any additional hard surface areas for use of grills, etc., required by Durham or any other governing entity must also be within the RPA.
- (j) The water flow resulting from the additional hardscape does not affect any neighbors or create additional erosion or drainage issues.

[Supporting materials to MRF: Plot plan, Pictures or Brochures, Building plans, Material list, and Contractor.](#)

4. Awnings

Awnings or similar shading devices are permitted in the RPA of the home only, and must be solid or striped, light to medium earth-tone in color, or match the exterior siding of the home as closely as possible. Awnings must remain retracted at night. No advertising, patterns, or logos are allowed on awnings. Awnings must be installed over a patio area and not over turf.

[Supporting materials to MRF: Plot plan, Picture, Material list, and Contractor.](#)

5. Concrete Coatings (Front covered entry/ rear patio)

A smooth coating may be applied only to the concrete under the roofed entry, not to the sidewalk or driveway. A coating (CR-90 produced by CMP Specialty Products or its demonstrated equivalent) may be applied in a 1/16-inch to 1/2-inch application. The coating may only be applied in a light gray color which is the color of raw concrete. The coating should only be applied by a contractor certified to apply that material.

Stamped concrete or coatings that replicate neutral stamped concrete, or a rough tile surface, tiles, stone, or other natural neutral tone materials may be used on top of the front roofed concrete entry. Approved by ARC on a case-by-case basis.

Rear patio coatings are allowed on rear porches and patios, subject to prior approval and at the discretion of the ARC

[Supporting materials to MRF: Plot plan, Material list, design](#)

6. Covered Lanai Modifications/Enclosures

Modification Requests may be submitted to enclose an existing covered porch/lanai. Any enclosure must have at least a 6-inch mulch strip around the perimeter. Any enclosure with a knee wall must install exterior siding that matches the rest of the home in material and color. Any enclosure modifications are made with the understanding that the HOA, landscaping company, or any other vendor are not liable for damage done to the modification. Tempered glass must be used in these modifications for safety.

Enclosure types & definitions:

(a) EZE Breeze Style Screen Porch:

A screen porch or covered patio with vertical or horizontal stackable vinyl panels or sliding vinyl panels that protect the structure from wind, rain, insects, dirt, and pollen. This structure keeps the feel of a screen porch. The structure can be built with or without a knee wall.

(b) Three Season Style Porch:

An enclosure with stackable vinyl/glass panels, sliding vinyl/glass panels, or glass windows that protect the structure from wind, rain, insects, dirt, and pollen. The following window styles are permitted: single hung, double hung, and fixed. This structure may be built with a knee wall. Additional insulation can be used but not climate controlled through an A/C and heating system.

(c) Sunroom Addition:

A structure built with glass windows supplied with appropriate climate control through an A/C and heating system. The following window styles are permitted: single hung, double hung, and fixed. The structure may be built with a knee wall. Sliding glass doors may be used on an exterior wall of a three-season room or sunroom.

(d) Screened Lanai:

Screening can be added to a covered lanai.

Applicants are cautioned that enclosing a covered porch/lanai that blocks emergency egress from the master bedroom with glass may not be permitted or may require

additional home modifications due to fire regulations (Municipal Housing Code Section 10-34-b-4 applies to ANY BEDROOM). The ARC may require either a building permit, or written proof that the proposed modification is not in conflict with any fire regulations prior to project commencement.

Drop down outdoor automatic/manual shades, mounted on the inside of the structure, are permitted over screens or windows on a rear covered or screened lanai. They must be a neutral solid color.

[Supporting materials to MRF: Plot plan, Pictures or Brochures, Building plans, Material list, and Contractor.](#)

7. Doors

(a) Entrance Doors:

Exterior front entrance doors can have the following options:

- 1) Solid door with no glass
- 2) Door with lite glass inserts with or without gridlines

Door may have full or partial door glass inserts. Glass inserts may include clear glass lites, obscured glass lites, earth tone tinted glass lites, beveled glass lites, leaded glass lite inserts, or a combination thereof. Multi-colored leaded stained-glass inserts or mirrored glass are not permitted. Doors with a single lite of solely clear glass may not be used in full or 3/4 door lite inserts. The shape of glass inserts or panels shall be rectangular or arched only. No irregular shaped glass inserts are permitted. Doors must be of solid core, exterior grade material. Entry doors must have either raised or recessed panels on the exterior side. Flat surfaced doors without any panels or surface relief on their exterior side are not permitted.

Entry doors are encouraged to be similar in design to the doors shown below but are not limited to these door designs.

All hardware should be consistent with hardware colors and materials originally installed in the community. Repaint color options are shown in OCA documents under Architectural Review (Updated Exterior Paint Schemes). If the door is painted it must meet requirements in the paint section of these guidelines.

Pet doors are not allowed in front entrance doors.

[Supporting materials to MRF: Picture and Material list.](#)



(b) Rear Doors:

Rear entrance door must be white or match original color. The rear door must include at minimum a half glass window panel. Also permitted is a panel slider door, similar in overall size to the Pulte model home options provided on the community website. Security doors are prohibited. Pet doors may be installed in rear exterior doors.

[Supporting materials to MRF: Picture, Material list](#)



(c) Storm & Screen Doors: (Fast Track Option)

Acceptable storm and screen door additions are shown below. Acceptable storm doors are full glass insert; no etched glass is permitted in a storm door. The door color must be white, black, dark brown or match the color of the door it stands in front of or the house trim color, and the hardware must be consistent with the original hardware of the existing door. Storm doors with retractable screen inserts may be used as long as they meet the specifications required of the storm doors.

Examples of Storm Doors:



[Supporting materials to MRF: Picture, Material list](#)

8. Fans

(a) Attic Fans:

Attic Fans (Fast Track Option) are permitted as long as no more than two (2) can be viewed from the street at any one spot, but not over the front entrance. If roof mounted, the color must match the color of the roof. Contractors must comply with the local building codes.

(b) Whole House Fan:

To the extent that a whole house fan requires an external exhaust vent, only one vent can be viewed from the street at any one spot.

(c) Front Porch Ceiling Fan:

Ceiling fans are allowed on the front porch provided they are flush mount, hugger or low-profile designs and as minimally visible from the street as possible. Any lights installed on the fan must be flush mount as well. The color of the fan should match the color of the ceiling, trim (paint color) or be black or dark brown.

[Supporting materials to MRF: Plot Plan, Picture of fan, Picture where fan is to be installed, Material list, and Contractor.](#)

9. Flag Mounts & Flags (Fast Track Option)

There shall be no stand-alone flagpoles allowed on residential lots in Carolina Arbors (Mandated by, CC&R Section 10.25).

One (1) flag mount may be attached to the front of the house, below the roofline, and must be securely mounted. No part of the flag may extend 4-feet beyond the home. The size of the flag may not exceed 4-foot x 6-foot. One (1) low-voltage or solar up-light will be permitted for the lighting of United States of America flag only.

10. Garage Windows

One (1) row of windows may be added to the top panel of the garage door and must be similar to those pictured below:



The mullions in the garage door windows can either be kept all intact or all removed with no ARC approval necessary.

[Supporting materials to MRF: Picture, Material list, and Contractor.](#)

11. Gas Lines – External

The addition of an external natural gas supply line for an appliance or a water heater is permitted if an internal routing of the piping is cost prohibitive. The piping may be attached to the rear or side walls of the house but not on the front elevation. In all cases, the piping shall be designed to minimize the external length and be installed in close proximity to the house wall for best appearance. In addition, the piping must be primed to prevent rust and painted to match the house siding. At the option of the homeowner, the piping may be enclosed with a metal or plastic cover to conceal the pipe. This cover shall also be painted to match the house siding. Due to a wide variety of piping arrangements, the suitability of each installation will be judged on a case by case basis.

[Supporting materials to MRF: Picture, Material list, and Contractor.](#)

12. Generators

Permanently installed low noise (<72db) natural gas emergency generators are permitted. Permanent installation of propane, diesel, or gasoline generators will not be approved. Screening is required, (Section D.24) whether landscape evergreen plantings or manufactured structures shall be of a material and color compatible with the design of the residence provided however, in no event shall plastic sheeting be used for screening. Screening must be located a minimum of 2-feet from the equipment to allow for adequate air circulation around the equipment. Generator and screening must be located in the RPA. The gas line and electrical conduit should be buried but if it is not possible, the requirements of Section C.11 (above) must be met.

[Supporting materials to MRF: Plot plan, Material list, Contractor and Screening material/Landscape plan.](#)

13. Lightning Protection Systems

A lightning protection system consisting of air terminals (lightning rods), cable conductors and ground terminations is permitted. The air terminals may be roof mounted. Cable conductors from the air terminals shall be routed through attic spaces to minimize visibility. Cable conductors routed on exterior walls shall be enclosed in a plastic pipe. The pipe shall be painted to match the surface to which it is mounted. Ground termination rods shall be located within mulch beds. Surge protection devices, which are installed entirely within a home, are not subject to RDG requirements.

[Supporting materials to MRF: Material list and Contractor](#)

14. Lights – External (Motion Detection Lighting is a Fast Track Option)

- (a) Exterior fence, building or deck-mounted light fixtures, including spotlights, floodlights, lantern lights and stair lights shall conform to the architecture of the home and are subject to approval by the ARC. Light fixtures shall be designed to enclose the lamp bulb, except for spot and flood lights. No lighting shall be permitted that constitutes a nuisance to a neighboring resident. Fixtures may be no closer together than 15 feet.
- (b) Exterior security, spot, or flood lights or fixtures that are designed to alert the resident of unusual or unwarranted activity on their property require written approval.
 - 1) Added types of security, spot, or flood lights must be automatically activated by motion. They should be set for a maximum on-time upon activation of 10 minutes.
 - 2) Security lights must be aimed onto the applicant's property only. Under no circumstances should any light be aimed in the direction of the property of another resident.
 - 3) Security lights may be approved for the RPA only.
- (c) One (1) post-mount light fixture is permitted and shall not exceed a height of 6-feet from finished grade. Post-mounted light fixtures shall conform to the architectural character of the home and will be subject to approval by the ARC.
- (d) Fixtures mounted on the front of the garage may be compact fluorescent (CFLs), incandescent, or LED lamps. All exterior light fixture replacements shall be black. If the fixture has glass it should be clear glass. Dimensions should be similar to previously installed lighting (h) 16-inches x (d) 7.5-inches x (w) 6.5-inches.). No light fixture may cover the house number.

[Supporting materials to MRF: Plot plan, Material list, and Contractor.](#)

Note: Attaching lighting to your home may void applicable warranties from Del Webb.

Note: Seasonal lights are not included in this section. Please see *Holiday Decorations* for holiday light guidelines.

EXTERIOR LIGHTING FIXTURE EXAMPLES:

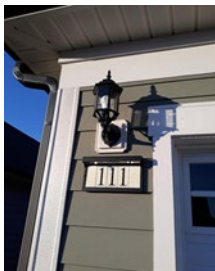
Scenario 1: Residents with one (1) light fixture or two (2) light fixtures in which house numbers are placed several inches from the current fixture:



Scenario 1 Replacements: Light fixtures should be similar to what was previously installed or similar to the following designs:



Scenario 2: Residents with two (2) light fixtures in which house numbers are directly below current fixture. This creates a situation and limits residents to fixtures that do not hang in a downward position. Lights in this situation should not block or impede view of house numbers. This is for safety reasons so emergency vehicles can clearly see house numbers (Durham County Building Code Ordinances Section 9.2.2).



Scenario 2 Replacements: Light fixtures should be similar to what was previously installed or similar to the following designs:



15. Mini-Split HVAC

Add-on HVAC units to assist the main HVAC are permitted. Mini-split units must be placed on a hard surface, such as concrete (grey in color) or pavers (grey or earth tone in color). Screening is required, (Section D.24) whether landscape evergreen plantings or manufactured structures shall be of a material and color compatible with the design of the residence provided however, in no event shall plastic sheeting be used for screening. Screening should be located a minimum of 2-feet from the equipment to allow for adequate air circulation around the equipment. Mini-split and screening must be located in the RPA.

[Supporting materials to MRF: Plot plan, Material list, Contractor and Screening material/Landscape plan.](#)

16. Paint Colors and Façade - Exterior

(a) General:

- 1) The original selections of exterior paint colors as well as brick and stone facade choices were developed for the builder by a professional design/color consultant with the goal to provide visual continuity and cohesiveness and thus respect the visual character of the Carolina Arbors community. Original paint and façade choices are available in OCA documents under Architectural Review (*Original Builder Paint and Façade Selections*). If the homeowner is uncertain of what the original color scheme is, the homeowner may contact Pulte at RaleighService@pulte.com, if the home is less than 10 years old. RDU Warranty will require an address.
- 2) Updated exterior paint color schemes can be found in OCA documents under Architectural Review (*Updated Exterior Paint Schemes*). Updates were developed by a professional color consultant with the continued goal to provide and maintain a visually cohesive community while allowing for a degree of individualism.
- 3) Any of the thirty paint schemes may be used to repaint a home as long as the same paint scheme is not on a home immediately adjacent and/or directly across the street. Modification requests should indicate the color schemes of the adjacent homes and those homes directly across the street, or by providing pictures of those homes to show their current color scheme.

- 4) Paint colors provided are Sherwin Williams brand however, the equivalent colors can be matched by other paint vendors.

For added convenience, Carolina Arbors' exterior colors schemes can also be found on the Sherwin Williams site at: <https://www.sherwin-williams.com/homeowners/color/find-and-explore-colors/hoa/durham/nc/carolina-arbors/>

- 5) Exterior Paint Finishes (Sheen):

- 5.1) Exterior paint for horizontal siding and board and batten areas can be a flat or satin finish only. Paint finish must be identified.

- 5.2) Paint finish for trim, shutters, gutters/downspouts, garage doors, and exterior doors can be satin, or semi-gloss only.

(b) Exterior Painting/Repainting:

- 1) Repainting with original builder colors:

If the homeowner is repainting the exterior of the home with the same color scheme and using flat or satin sheen, a Fast Track form is required for approval.

- 2) Repainting with a new color:

If you are changing any colors, you must follow the requirements herein. Color scheme identified as "Board & Batten/Shakes" color is optional, either or both may be painted the same color shown for "Siding". Approval from the ARC is required.

- 3) Trim Colors:

Trim colors can be Toque White (SW 7003), Accessible Beige (SW 7036) or Shoji White (SW 7042) or an equivalent matching color from another paint vendor.

Supporting materials to MRF: Current house paint scheme #, Pictures of front and side elevation, proposed paint scheme #, paint finish, color schemes or pictures of adjacent houses and directly across the street.

(c) Front Door Color/Stain Options and Shutter Color Options:

- 1) Front Door Paint Colors:

- 1.1) If repainting using the original builder color scheme use the door color provided in *Original Builder Paint and Façade Selections* found in OCA Documents under Architectural Review.

- 1.2) For additional options for door colors for a particular color scheme refer to *Updated Exterior Paint Schemes* found in OCA Documents under Architectural Review.

[Supporting materials to MRF: Current house paint scheme #, Picture of front elevation, proposed front door paint name & # and paint finish.](#)

2) Front Door Stain Colors:

- 2.1) If your original door has a wood look stain, the door can be re-stained using a gel stain.
- 2.2) Unfinished replacement doors can also be painted with a gel stain to simulate a wood door.
- 2.3) Stain colors that can be used should be similar to those shown in the following example (Minwax brand shown) or a matching color from other vendors.



[Supporting materials to MRF: Proposed front door stain name and color.](#)

(d) Shutter Color Options:

Shutter color must match front door color with the following allowable alternatives:

- 1) Black or dark brown.
- 2) The original shutter color.
- 3) If you have a stained door, you can select any of the door/shutter color options for your paint scheme.

NOTE: If painting shutters, use a paint formulation for use on vinyl.

- 4) When changing paint schemes and the new scheme includes a door/shutter color choice that closely resembles the current door/shutter colors, an exception to repainting the door/shutter may be granted. ARC will determine the acceptability of this exception.

[Supporting materials to MRF: Current house paint scheme #, Picture of front elevation, proposed front door and shutter paint name.](#)

(e) Garage Doors Colors:

- 1) Approved colors are White (Behr Color Code CBP-1) or Almond (Behr Color Code CBP-2).

(f) Gutter and Downspout Color:

- 1) Approved colors are Dark Bronze, Linen, or Almond

(g) Foundation and Stem Wall Paint Color:

- 1) Foundation stain applied to the Styrofoam insulation should match as closely as possible to the existing gray concrete color.
- 2) Concrete stem walls can be painted the same color as the horizontal siding.

(h) Back Door:

- 1) The rear door of the house must be painted white or with the appropriate scheme trim color.

(i) Wood Deck Color/Stain Options:

- 1) For waterproofing without color change, a clear deck sealer is allowed to protect decks. This should be applied to the top of the floor decking, top and sides of the deck rail components and all sides of the deck support posts including braces.
- 2) For waterproofing with color change, semi-transparent stains are allowed to protect decks. No solid stains or paint are permitted. These stains should be applied to the same surfaces as specified above.

[Supporting materials to MRF: Paint or stain color and vendor.](#)

(j) Stone and Brick Façade:

Homeowners who did not have stone or brick facades installed at construction may add any of the original choices or similar choices as those found in the *Original Builder Paint and Façade Selections* (found in OCA Documents under Architectural Review). Mortar colors should coordinate with stone or brick choices.

[Supporting materials to MRF: Façade name/type with mortar color. Pictures and contractor.](#)

17. Radon Mitigation System

A mitigation system is permitted but must be installed within the 18-inches side mulched bed or in the rear of the home.

[Supporting materials to MRF: Plot plan, Picture, Material list.](#)

18. Roof Shingle Replacement (Fast Track)

Approved roof shingles should be architectural grade. The required roof shingle color is Tamko's Weathered Wood or Weathered Wood color from other manufacturers (see *Original Builder Paint and Façade Selections* found in OCA Documents under Architectural Review).

19. Satellite Dish & Antennas (Fast Track Option)

No antenna, satellite dish, or other device for the transmission or reception of television or radio (including amateur or ham radios) signals is permitted outside the dwelling unit, except those devices whose installation and use is protected under federal law or regulations- generally, certain antennae under 1-meter in diameter (CC&R Section 10.9). The consideration for satellite dishes is as follows:

- (a) The antenna or other device is designed for minimal visual intrusion, i.e., is located in a manner that minimizes visibility from the street or an adjacent Lot. No dish should be placed in the front area.
- (b) The antenna or other device complies to the maximum extent feasible with the RDG within the confines of applicable current federal regulations, i.e., without precluding reception of a quality signal or unreasonably increasing the cost of the antenna or device.
- (c) Two (2) satellite dishes maximum, measuring 1-meter or less in diameter each may be erected on any lot and installed on the rear elevation of the house. A satellite dish cannot be installed on a pole in the ground.

- (d) A radio antenna must be a one element vertical antenna, attached to the back of the house. Towers and poles are not allowed. An antenna may extend up to a maximum of 12-feet above the lowest part of the roof ridgeline and not exceeding Durham ordinance. A maximum of two (2) vertical radio antennas are allowed. Any interference caused by the transmission is the responsibility of the operator to resolve.
- (e) All unused antennas must be removed.

20. Security Cameras (Fast Track Option)

Security Cameras may be installed on properties, subject to the following guidelines. All installations must maintain the architectural integrity of the home and respect the privacy of neighboring properties. Cameras should be positioned and installed in a manner that minimizes visual impact and comply with community standards. Doorbell cameras are permitted as a replacement to and in the same location as the originally installed doorbell and do not require prior ARC approval. The doorbell camera does not count toward the total number of cameras allowed.

- A maximum of four (4) cameras per home are permitted; two (2) in the FPA and two (2) in the RPA.
- Non-functional or “dummy” cameras count towards the total allowed.
- Cameras may be mounted on the soffit, fascia, trim boards directly over the garage or adjacent to the ceiling under the covered front porch. Other locations will be considered on a case-by-case basis with a full modification request.
- Solar panel power supplies to cameras must be installed as close to the cameras as possible.
- All wiring should be installed as discreetly as possible. An example would be the use of a plastic cable raceway.
- Cameras must never be aimed at a neighbor’s home.
- Floodlight cameras are permitted only in the RPA.
- Camera sirens may not be activated.

21. Shutters

Shutters may be added to front, side or back windows. They must match, in design and color, to those already on the home, or, if none, those styles offered by Del Webb in the section of Carolina Arbors in which the house was built.

[Supporting materials to MRF: Plot plan, Picture, Material list.](#)

22. Signage

Use restrictions of signs are covered in the CC&R Section 10.2. No ARC approval is needed to display any of the following types of signs as long as the guidelines written herein are followed, unless more restricted by the City of Durham:

(a) For Sale Signs:

Unless otherwise permitted, no “For Sale”, “For Rent”, “For Lease”, or similar sign advertising a lot for sale or for lease may be placed on any lot or any portion of the Properties, however, one (1) such sign may be placed in the home and displayed through a window. The sign must be removed within two working days following the closing of the property, or the termination of the listing agreement. Open House directional signs which give directions to a house which is for sale or for lease to which the public is invited for a walk-in inspection are not permitted.

(b) Soliciting Signs:

A homeowner will be permitted to post a “no soliciting” sign near or on the front door to the principal residence constructed upon the lot, provided that the sign does not exceed twenty-five (25) square inches. No sign may be displayed in the window of any improvement located on a lot

(c) Political Signs:

The Association shall not regulate the content of political signs. A homeowner may post up to five (5) signs, one (1) sign per candidate or issue, on such homeowner’s lot, each with a maximum of five (5) square feet, forty-five (45) days prior to an election and signs must be removed within seven (7) days after such election. Political signs are allowed in the front yard Private Area, within 10 feet of the foundation of the dwelling unit and must be placed in the mulched area. Note that this standard is in accord with, but more restrictive than, the City of Durham’s ordinance. For purposes of this section flags and banners displaying political content are also considered to be signage.

(d) Security Signs:

Only “official monitoring service” commercial security/alarm signs, such as ADT, CPI, are permitted and shall be limited to one placard or sign not to exceed 18 inches in height and must be placed in a mulched area near the front door, but no more than 2-feet from the residence. An “official monitoring service” commercial single security sign or placard is also permitted in the backyard mulched area near the back door. Official monitoring service window security stickers, not greater than 4-inch x 4-inch, are permitted with a single sticker per room. No approval is required.

23. Skylights, Solar Tubes & Sun Tunnels (Fast Track Option for Solar Tubes)

(a) Skylights:

Skylights with tempered glass are permitted as long as no more than two (2) can be viewed from the street at any one spot, but not over the front entrance; the color must blend with the roof and the size is limited to not larger than 24-inches x 48-inches

(outside dimensions) and 6-inches in height. Applicant is required to obtain a City of Durham issued building permit if this project will require structural changes to the existing roof.

[Supporting materials to MRF: Plot plan, diagram showing location of skylights on roof, material list, building permit, contractor.](#)

(b) Solar Tubes or Tubular skylights/Sun Tunnels:

Solar Tubes/Tubular skylights/Sun Tunnels are permitted as long as no more than two (2) can be viewed from the street at any one spot, but not over the front entrance. The color must be the same or similar as the roof and the size is limited to 14-inches or less in diameter and 6-inches in height. Applicant may use the FastTrack process for a Solar Tube or Sun Tunnel project. Contractors must comply with the local building codes.

[Supporting materials to request: See community website for Fast Track form](#)

24. Solar Panels

Solar Panels are permitted on roofs provided they cannot be seen from the street that runs in front of the house. Panels should be installed in as contiguous/rectangular pattern as possible. The solar panels and piping color and texture should match the roof color and texture as much as possible so that they are as inconspicuous as possible. It is the homeowner's responsibility to ensure that the roof can carry the additional weight and wind loads.

[Supporting materials to MRF: Plot plan, Picture, Material list, and Contractor.](#)

25. Snow Guards, Leaf (Gutter) Guards, Downspout Cleanouts

(a) Snow Guards:

Snow Guards may be installed on the front metal roof of the home provided they are the same color as the roof and are the "clamp-to-seam" style.

(b) Leaf and Gutter Guards:

Leaf and gutter guards may be installed over all gutters around the roof of the home provided they are flat on top of the gutter, or have minimal profile, and match the existing gutter color.

(c) Downspout Cleanouts:

Downspout cleanouts are allowed by application providing they can be no larger than the dimensions of the downspout or the connecting boot, must be consistent in color with the existing downspout, and can be no more than 18-inches from the ground to the top of the cleanout.

[Supporting materials to MRF: Material list and photos.](#)

26. Windows

(a) Tinting or Sunshields:

Windows may be tinted or sun shielding may be applied as long as no patterns, color change, or significant mirrored effect can be seen from the outside of the house.

[Supporting materials to MRF: Material list, and Contractor.](#)

(b) Adding Additional/Replacing Existing Windows:

All new windows must match the existing windows of the house. The trim/frame on all replacement windows must match as closely as possible in color and size to the existing windows on the home. The addition of windows is not permitted in the side concrete foundation walls of basement homes. Applicants must comply with all local codes and permits. The addition of windows will be addressed on a case-by-case basis.

[Supporting materials to MRF: Material list, Photos, and Contractor.](#)

(c) Stained/Etched glass:

Stained/Etched glass may be installed inside a home behind a window. The original windows must remain in place.

[Supporting materials to MRF: Drawing with design and colors, and Contractor.](#)

D. Landscaping & Hardscaping Modification Requirements and Guidelines

1. General

(a) Common Areas:

Certain areas have been designated as common area open space, wetland or tree protected areas on neighborhood plats and shall be maintained as required by regulatory authorities and as described in specific permit conditions and in the CC&R. No homeowner or resident may mow, fertilize, apply pesticides to, maintain, alter, modify or add any features to the area not owned by the homeowner, unless otherwise authorized or approved by the Landscape Committee/HOA Board of Directors.

(b) Residential Property:

- 1) Any and all landscaping installed by homeowners must be installed not to impede existing drainage patterns or in any drainage swales. The plantings approved for Carolina Arbors were selected after consideration of many factors. Landscaping replacement by homeowners shall be in accordance with the community-wide maintenance standards described in the following sections.
- 2) All landscape modification requests for private lots are to be submitted on the MRF. All parts of the form must be completed prior to review by the ARC. A detailed plot plan showing the location of any plantings, the type of planting, the variety of plant and the height, and spread at maturity must be included with the request form. Plantings of trees, shrubs, groundcovers, perennials, grasses and vines shall take into account future growth, and be at a reasonable distance from foundation walls.
- 3) Exceptions: No modification requests are necessary for flowers, ground cover plantings, ornamental grasses or shrubs planted in a previously approved mulched area, or mulched areas installed by the developer. Mature plant height must not exceed 36-inches.
- 4) It is the responsibility of each homeowner to replace, as necessary, all landscaping and sod on the lot including the turf between the sidewalk and curb. The homeowner will remain ultimately responsible for all landscape replacement including any additions made by the homeowner.
- 5) Plants under windows shall be maintained no higher than 18-inches above the window bottom (Egress fire code per International Residential Code requirements).

- 6) To facilitate mowing and edging, all plantings must remain a minimum of 6-inches inside the mulched area. Features permitted in a grassed area shall require a 6-inch mulched area surrounding that feature.
- 7) Any modifications made to FPA or RPA must comply with the definitions and restrictions set forth in this document. In areas outside the Private Areas, installation of landscape by homeowners may be approved on side yards that face a street or exceed 15-feet between buildings, strips along the sides of the house, mailbox areas, and connecting buffer areas as described in other sections and in conformance with these guidelines, after obtaining the written permission of the ARC. These additions must preserve attractive view corridors and promote efficient landscape maintenance.
- 8) No plantings or mulched areas can be placed in any way that would affect yard drainage, and no plantings or mulched areas will be allowed in swales. In all cases, a minimum of a 36-inch mowing corridor shall be maintained, including from the side property lines.
- 9) Due to the local environment, drought tolerant shrubs & trees should be a consideration when choosing new plantings.
- 10) Side yard plantings, limited in size to 36-inches in height at maturity and trimmed to stay within the mulch bed, may be used on the sides of the home inside a continuous, mulched strip that is no more than 18-inches wide and must be adjacent to the foundation of the home. Wider planter strip widths, up to 48-inches, may be approved on a case-by-case basis for corner lots or other lots with homes spaced greater than 15-feet apart.
- 11) Plans for such landscaping must conform to the provisions of the RDG and contain acceptable plantings. All landscaping shall be designed and maintained so as not to interfere with swales or drainage, on the site or adjacent properties, and not obstruct the view of traffic entering, exiting, or passing the site.
- 12) Plantings for screening purposes, not to exceed 8-feet in height at maturity, may be placed next to lanais, sunrooms, patios, or porches, where space permits.
- 13) The front yard must be a minimum of 25% grass, excluding the driveway and walkway to the front door.
- 14) The rear yard must always remain a minimum of 40% grass.
- 15) To preserve attractive view corridors and promote efficient landscape maintenance, except as provided above, no installation of landscape, hardscape materials, permanent installations or other improvements by homeowners shall be

approved for any portion of the lot outside the Private Areas, except in the following limited circumstances:

For rear yards of all lots, or side yards that face a street or open common area, the installation of landscaping, hardscape materials or other landscape improvements by homeowners may be permitted in the applicable rear yard or side yard provided plans thereof are approved in writing by the ARC prior to the installation of any landscaping, hard-scape materials or other landscape improvements on any such lot. Plans for any such installation must otherwise be in conformance with the provisions of the RDG and contain acceptable plantings and materials.

- 16) The ARC reserves the right to restrict the number of decorative components, artifacts, statues, and fountains, and may deny an application for the addition of a decorative component/yard decoration strictly on aesthetic grounds. In addition, “holiday decorations” shall not be construed to be “decorative components/yard decorations”.

The ARC in its sole discretion, may consider the following criteria when reviewing a request hereunder:

- (a) The impact the improvements will have on views both on and off the subject lot.
- (b) The impact the improvements will have for purposes of future maintenance of the areas affected by said improvements.
- (c) Whether the improvements will enhance the overall appearance of the community.
- (d) The ARC shall have the express right to specify the location of any such improvements outside the Private Area.

(c) Buffer Areas on Individual Lots:

There are required buffer areas on individual lots to serve as landscape screening for the individual homes on the home sites within Carolina Arbors, on or near the border with adjacent lots, fences and/or walls that are currently planted with a variety of shrubs and several species of trees. These plantings meet the requirements of the local ordinances, as well as enhance the environment of Carolina Arbors. It is the intention of the HOA to maintain the buffer areas in a more natural state rather than the look of a formally pruned garden. The following is intended to set forth the guidelines for the maintenance of these areas.

- 1) The shrubs in the buffer areas will be pruned as needed, approximately once a year, by the landscape contractor, during the appropriate season and in such a

manner as to maintain their natural shape. Individual homeowners who wish to perform their own pruning on their lot may do so, if they strictly adhere to the guidelines included in this section.

- 2) Once mature, the shrubs shall be maintained at a maximum height of 6 to 8-feet. It is intended that all of the shrubs in adjoining buffer beds be maintained at a similar height to maintain continuity in the neighborhood.
- 3) In the event of the loss of any tree and/or shrub in this buffer area, they must be replaced with the same or similar species at the homeowner's expense. Trees and shrubs will be replaced by one of similar size as the original planting. Request for the selection of other tree or shrub species will only be permitted with a written exception from the ARC. Replacement should be performed at the appropriate season, to help ensure viability of the new plants at homeowner's expense.

No alterations of the on-lot buffer areas, the removal or addition of trees or shrubs, shall be performed without the express written approval of the ARC.

2. Architectural Features (Benches, Planters, etc.)

Landscape architectural features include such items as benches, planters, etc. that are an integral part of a landscape architectural design. Drawings must be provided to the ARC which clearly show the location, size, and materials planned for these features. In addition, a photograph of the home and the relationship of the feature to the existing or proposed landscape must accompany the submittal. Landscape architectural features may be located in the FPA or RPA of the lot only.

Outdoor furniture must be stored in non-grassy portions of the Private Area.

[Supporting materials to MRF: Plot plan, Picture, Material list, and Contractor.](#)

3. Artifacts and Statues

Artifacts and statues shall be limited in height to 4-feet above the natural grade of the lot. Statues and artifacts will be allowed only in the Private Area of the lot if they meet the following criteria:

- (a) Artifact: Shall include the following:

Clay, masonry, metal or wooden objects including birdbaths, animals, gnomes, cutout objects, and planters. Artifacts may not exceed 4-feet in height. Pots made from traditional garden materials are encouraged. Plastic artifacts are not permitted. The ARC reserves the right to limit the number of artifacts in the Private Area.

(b) Statue: Shall include the following:

Clay, masonry, metal, or wood statuary, including human figurines, animals, religious figures, etc. Plastic statues are not permitted. Statues may not exceed 4-feet in height. The ARC reserves the right to limit the number of statues in the Private Area.

The ARC reserves the right to limit the number, size, style and quantity of all yard decorations. No articles shall be left on portions of the lot so as to impede mowing and maintenance activities.

The ARC reserves the right to require screening of artifacts and statues. If plantings are used for screening, adequate screening shall be plantings which initially, i.e. when first installed/planted, screen a minimum 50% of the statue or artifact, and which substantially screens the statue or artifact one year from date of approval.

[Supporting materials to MRF: Design plans on Plot plan complete with legend and Material list and Contractor \(if applicable\).](#)

4. Barbeque Grills – Charcoal/Gas/Propane

Built-in or portable barbecue or gas grill units shall be for cooking only and must be located within the RPA. Built-in barbecue units must be designed as an integral part of the home. Location must be carefully planned to minimize smoke or odors affecting neighboring properties. For safety, the location from the residence of any grill unit must take into account local requirements and recommendations. The Durham Fire Department recommends a distance of at least 10-feet from any wall of the home. The HOA will not be responsible for damages if the applicant chooses to ignore any safety requirements and recommendations. All outdoor fires must be propane, natural gas, or charcoal. Outdoor wood burning is prohibited. Built-in or portable gas grills requiring installation of a gas line, and/or electricity requires an application be submitted to the ARC. Portable grills must be stored on a hard surface, such as concrete (grey in color) or pavers (grey or earth tone in color). If not on the patio, installation of such a surface for that purpose cannot exceed 4-feet by 4-feet.

[Supporting materials to MRF: Plot plan, Picture, Material list, and Contractor.](#)

5. Barbeque Grill Gas Line:

Connection of a barbeque grill to a gas line shall be a Fast Track item if the gas line was installed as a part of original construction of the home or the gas line installation has been previously approved by ARC.

Installation of a new gas line and connection of a grill requires ARC approval through the normal process. Any required permits must be secured by the homeowner and installation must be by a licensed contractor. All other standard provisions apply.

[Supporting materials to MRF: Plot plan, Picture, Material list, and Contractor.](#)

6. Bird Feeders and Houses

CC&R Section 10.24 limits feeders/houses to a total of 3 per lot.

Up to two (2) bird houses/feeders may be installed within a mulched area within the RPA. The structure may not be larger than 12-inches (l) x 12-inches (w) x 36-inches (h) and not be higher than the eaves of the home as measured from the ground to the top of the bird house/feeder. Installation on perimeter walls, aluminum fences, or under the house eaves is not allowed.

One (1) bird house or feeder is permitted within the mulch area of the FPA. The structure may not be larger than 12-inches (l) x 12-inches (w) x 36-inches (h) and not be higher than the eaves of the home as measured from the ground to the top of the bird house/feeder. This structure will count as one (1) decorative component in the FPA. Installation on perimeter walls, aluminum fences, or under the house eaves is not allowed. Multiple bird dwellings such as “bird condos” or bird/chicken coops are not allowed.

[Supporting materials to MRF: Plot plan, Picture, Material list.](#)

7. Decorative Components / Yard Decorations / Pots for Plants

Decorative Components shall be limited in height to 4-feet above the natural grade of the lot.

- (a) The combined number of decorative components/yard decorations in the FPA is limited by the builder model category of your home; Passports can have up to four (4) decorative components, Expeditions can have up to five (5), and Pinnacles can have up to six (6). Porch furniture, potted plants, plaques, wreaths & door ornaments which are placed on the front porch are excluded from the count but may be limited by the ARC. Decorations hung on the wall, facing the primary street of the home are limited to one (1). Two (2) potted plants may be hung from the front porch ceiling structure.
- (b) The combined number of decorative components/yard decorations in the RPA is limited by the builder model category of your home; Passports can have up to four (4) decorative components, Expeditions can have up to five (5), and Pinnacles can have up to six (6). Any patio furniture, potted plants, or door decorations on lanais or patios are excluded from the count but may be limited. In addition to the patio furniture and potted plants (no consistently empty pots allowed), patios may include up to two (2) raised planters and one (1) storage bin (chest style or deck box) that is no more than 5-feet by 3-feet by 3-feet, (for cushions, garden chemicals, tools, etc.).
- (c) All decorative components/yard decorations must be placed clearly within the mulched area or on the concrete walkway from the driveway to the front door. No decorative components can be placed on the driveway which is defined as the concrete area in front of the two-car garage.

- (d) One cohesive grouping of small decorative components may be counted as one (1) decorative component.

8. Drainage

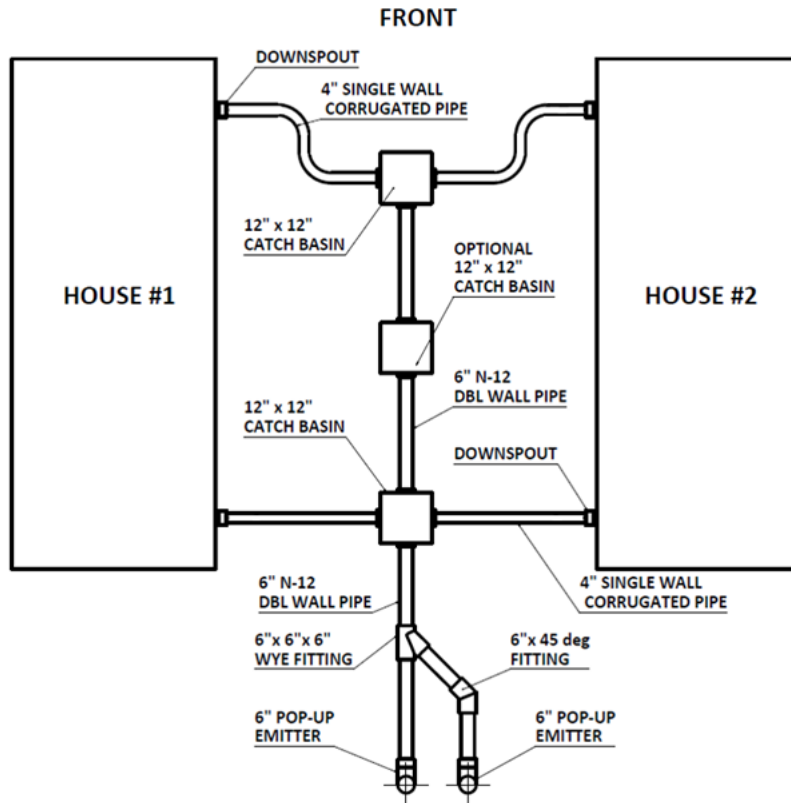
Because each installation may have some unique circumstances based on lot size and grade, all drainage projects must be submitted to the ARC for review and approval on a case-by-case basis.

Any homeowner or resident who changes the existing grading or drainages shall be liable for all costs and expenses of repairing such changes, or any costs, liabilities, damages or causes of action arising out of such changes.

- (a) Minor problems with standing water between homes may be addressed by extending downspout drain lines so that the pop-ups allow water to exit away from the home or landscaping beds. Locate each downspout at your home, then identify the pop-ups and note the water flow during heavy rains to determine if the water runs away from the home or back between the homes, causing the problem. The submittal should include information on both the new and existing locations of the pop-ups.
- (b) In some cases, landscape beds have expanded so far that they block the flow of water drainage between houses. Landscape professionals could help you analyze if reducing the beds or re-grading would help water to exit more effectively away from the house. A description and/or drawing of any re-grading or bed size reduction showing the water flow change is required.
- (c) Complex problems may benefit from the installation of a drainage piping system. Issues related to either standing water or ground erosion due to substantial rainwater flows may be resolved by the installation of a drain piping system to transport rainwater to the rear of the property. A drainage piping system is used to convey water from the downspouts and/or from catch basins placed in areas where ground water accumulates. In the case of soil erosion due to rainwater flows, a drainage piping system transports water to areas where it can be discharged without excessive erosion. In all cases the piping is buried, and the only visible components are the catch basin grates and the system pop-up emitters.

For projects between two properties, the modification requests shall be submitted and signed by the homeowners of both properties.

Appropriately sized drainage systems will utilize either 4-inch or 6-inch main drain collecting piping. In general, smaller houses will use 4-inch main pipes and larger houses will use 6-inch piping. The following sketch is provided as guidance to allow each homeowner, or their representative, to utilize the recommended drainage system components.



When any additions, alterations, or renovations are performed to an existing detached home, the established lot drainage shall not be altered.

- (d) All downspout pop-ups shall drain to the ground solely within the deeded lot area and may not be discharged closer than 3-feet from the front or rear property line. Drain lines which direct roof drainage water must be approved by the ARC and will comply with the following standards:
- 1) A drain line plan with pipe sizes, discharge locations, pop-up emitters, and existing drainage patterns must be submitted on a plot plan of the property to the ARC for consideration.
 - 2) Air gaps must be provided between downspouts and drain line extensions.
 - 3) Drain line extensions may not discharge water directly perpendicular to a neighboring property or an existing drainage flowline. Drain line alignments shall be set so that discharge water flows in the same basic direction as existing flowlines on the lot. Pop-up emitters, water disbursement, and/or erosion control measures must be provided to eliminate erosion of the soil on the lot.
 - 4) Roof drain downspouts, or any other surface runoff or groundwater may never be connected directly or indirectly to any public sanitary sewer system.

- 5) Any sod that is disrupted or removed shall be replaced with a hybrid Bermuda sod.

[Supporting materials to MRF: Plot plan, Picture, Material list, and Contractor.](#)

9. Edging Material (Aluminum and Coated Steel are Fast Track options)

(a) Fast Track

Aluminum or coated steel edging may be installed. It shall be dark brown or black. Coated steel and aluminum edging may be installed up to 3-inches above ground level.

(b) Non-Fast Track

Stone pavers/concrete pavers/solid bricks may be used as edging for areas that abut grass provided, they are installed at ground level. Stone pavers/concrete pavers/solid bricks may be used as edging for areas that abut only concrete provided, they are installed no more than 3-inches above concrete level.

Rubber edging is permissible, but it must be solid ½-inch thick, dark brown or black and solid color throughout. Rubber edging may be installed up to 3-inches above ground level.

Stone, pebbles, river rock or other decorative items that are adjacent to edging shall not be any higher than the edging.

The top edge of all edging must be parallel to the abutted surface and uniform. Scalloped, diagonally, or randomly installed edging is not allowed.

[Supporting materials to MRF: Details and photos of materials](#)

APPROVED MATERIALS FOR EDGING

Stone pavers, concrete pavers, or solid bricks must be installed at ground level (no portion of the edging may be above ground, as shown below)



Aluminum or Steel Coated edging:



10. Fencing, Privacy Screens, and Railings

(a) Fencing:

- 1) No alterations or changes, shall be allowed to fences installed by the developer for any residence.
- 2) If fences have not been provided by the developer, fences will be allowed only within the RPA, except when a patio aligns with the RPA then any fence may abut the patio within 6 inches outside the RPA. All other RPA requirements remain. Fences can be placed at rear property line if at least 4 feet of turfed common area abuts property to allow mowers to pass. If private property or unimproved common area abuts property, then at least a 4-foot setback must be retained for mower passage between yards.
- 3) No fence may be erected within 3.5-feet from the center of a swale. Fencing may not be installed in the drainage easement shown on a plot plan. Fencing may be placed in the 2-foot drainage setback.
- 4) Whenever a fence is erected in the RPA by the homeowner, the homeowner is responsible for its maintenance and the cost of its removal should that become necessary. Once Rear Area fencing is installed, landscape maintenance for the enclosed area will not be provided.
- 5) No fences shall be allowed in front or side yard areas.
- 6) All fences must be within 36-inches and 48-inches in height. All fences should have 90° corners and run parallel and perpendicular to the primary wall surfaces of the home as originally constructed, except to skirt obstacles. The bottom rail or

picket of any fence must be no more than 2-inches above the finished grade of the lot.

- 7) All yard fences must be of approved black aluminum tubular design.
- 8) Consideration will be given to masonry retaining walls in combination with black aluminum metal tubular fencing within the RPA.
- 9) Chain link fencing shall not be permitted.
- 10) A site plan showing fence alignments must be submitted for approval prior to construction in accordance with the review procedures hereof. It is the intent of these provisions to preserve view corridors and access for efficient maintenance, and to protect drainage patterns established with the original lot design.
- 11) A fence must be inside the RPA. Fences must be erected at grade and be used to enclose and/or define an existing space.

Black aluminum tubular fencing is shown below:



Also approvable is the installation of a ‘puppy panel’ as an addition. See example below:



[Supporting materials to MRF: Fence location on Plot plan, Picture, Material list including color/height & material of fence, and Contractor.](#)

(b) Privacy Screen/Fence:

- 1) Applications for privacy fences and privacy landscaping must be submitted for approval prior to installation. Side facing privacy fence panels must be permanently installed parallel to the side of the house and can only extend as far as the depth of the approved patio. Rear facing privacy fence panels must be permanently installed parallel to the rear wall of the home and be no more than 8-feet in length. Any such side facing privacy fences shall be limited to one side of the home. Privacy fences shall be no more than 8-feet in height.
- 2) Approvals will be granted by the ARC on a case-by-case basis.
- 3) Privacy landscaping will follow the same rules and restrictions as privacy fences.
- 4) Panel screening of patios or hot tubs is allowed.

Examples of approved panel style screens for screening spas, etc.



[Supporting materials to MRF: Fence location on Plot plan, Picture, Material list including color/height & material of fence, and Contractor.](#)

(c) Railings:

- 1) Railings for patios and/or porches must be of either approved black or white aluminum tubular design, black or white wrought iron, or white vinyl design, and the height consistent with the design of the area where railings are to be installed, e.g., between columns on the front porch.
- 2) Wooden railing may only surround a deck. It must be constructed in such a manner as to meet local and national building codes. All rails must be constructed with a smooth top so as to be able to serve as a handrail. Deck railings cannot exceed 48-inches in height from decking, and must be constructed to match the material and color of the decking or the trim of the home.

Railings installed in a concreted area surrounding the home should use white vinyl coated or black or white aluminum. See examples below:



Black Aluminum Metal Inserts with Stained Wood Railing Suitable for Decks:



[Supporting materials to MRF: Fence location on Plot plan, Picture, Material list including color/height & material of fence, and Contractor.](#)

(d) Fences – Invisible (Fast Track Option)

- 1) Invisible fencing is intended to be used in the RPA for the restraint of pets. Invisible fences may be extended past the RPA on a case-by-case basis. No alterations of the yard grade shall be permitted by the installation of such system.
- 2) The HOA shall not be responsible for repair to any system that is damaged by normal maintenance of the yard by the HOA or their designee.
- 3) Regardless of the method of restraint used, pet owners are responsible for assuring that their pets do not run free, and must maintain control of pets at all times. Pet owners are liable for any damage to persons or property caused by their pets.

11. Fireplaces and Fire Pits

- (a) Outdoor fireplaces may be constructed in the RPA as a free-standing structure on a proper foundation either on or adjacent to a patio. The fireplace shall be made of brick, cultured or natural stone or masonry block, consistent with the guidelines and of a color consistent with the other features of the home.
- (b) The 4-foot by 4-foot grill pads that are allowed for barbeque grills can be used for a fire pit.
- (c) Fireplaces and fire pits may be fueled by either natural or propane gas, but if propane gas is used, the tank must be concealed within the unit design. Wood fires are not allowed. Plans must be approved by the ARC on a case-by case basis.

[Supporting materials to MRF: Plot plan, Picture, Material list, and Contractor.](#)

12. Fountains & Water Features

Fountains and water features shall be limited in height to 4-feet above the natural grade of the lot. Any fountain shall be of natural-looking material, color and design, each of which is compatible with the overall architectural character of Carolina Arbors. Fountains and water features shall be permitted only within portions of the FPA or RPA. Design of these features should discourage creation of stagnant pools of water.

[Supporting materials to MRF: Plot plan, Picture, Material list, and Contractor.](#)

13. Gardens

- (a) Planting of annuals, vegetables, and other plantings are permitted in the RPA provided that they are installed in an area that is clearly marked with boundaries that no not exceed two 4-feet by 4-feet sections or one 4-feet by 8-feet section. Must allow a minimum of 3-feet between sections to facilitate lawn maintenance. The ARC reserves the right to limit the final size of gardens.
- (b) Pavers or stepping stones may be placed in gardens/mulched areas in order to create a pathway and must be placed at least 4-inches apart.
- (c) Gardens must appear neat and clean during the growing season. Debris must be removed periodically, and all dead plant material must be removed once the growing season has ended.
- (d) Gardens cannot be placed in any way that would affect yard drainage, and no gardens will be allowed in swales.
- (e) Rabbit/Deer deterrent fencing is not permitted.

14. Ground Cover

(a) General:

The ground surfaces of the property shall be covered with approved living, or inert materials, if not covered with concrete. Mulch must be consistent with the type used throughout the community by the HOA. Where turf is used within the property, a hybrid Bermuda is required. Topsoil and decomposed granite are not considered inert material. Care needs to be taken to ensure that any ground cover does not migrate into drainage areas.

(b) Mulch:

- 1) Mulch is necessary in the landscape beds to suppress weeds and slow moisture evaporation. Mulch must be consistent with the type approved by the HOA that is used throughout the community. Mulch must be triple shredded pine bark mulch. Mulch application, when provided, is administered by the HOA in accordance with current community procedures. Specific processes and participation requirements are subject to change and will be communicated by the HOA. If you wish to apply your own mulch, triple shredded pine bark mulch is required. For dyed mulch application, only brown triple shredded pine bark mulch is allowed. Property shall be maintained at HOA standards.
- 2) The use of rubber mulch, solid plastic sheeting or polyethylene over ground areas will not be permitted. If landscape fabric is used, it must allow the free flow of water, air, and gases to and from the soil.

(c) Decorative Rock or Stone:

- 1) Decorative rock or stone shall be permitted as decorative ground cover with the following conditions:
 - 1.1) Decorative rock or stone shall not be used as bed edging and shall not be used in abutment to turf areas. Decorative rock or stone shall be separated from any turf area by a mulch area at least 6 inches in width and/or a bed edging conforming to the requirements of these Residential Design Guidelines.
 - 1.2) Except as otherwise provided herein, decorative rock or stone must be between $\frac{3}{4}$ inch and 1 inch in diameter and be of natural tone or white in color.
 - 1.3) River rock used as decoration may be as large as 6 inches in diameter.

1.4) Large rock boulders may be placed in mulched areas provided that (a) they are natural in color; (b) they are limited in height to 2 feet above the natural grade of the lot; and (c) that there is no more than one (1) boulder per 10 linear feet of mulched area.

1.5) All rock and stone used for decoration may not exceed 24 square feet per lot.

(d) Erosion Control Rock or Stone:

1) Erosion control rock or stone may be used in areas where run-off from heavy rains would cause erosion with the following conditions:

1.1) Erosion control rock or stone may comprise of river rock, rip rap, or similar rock.

1.2) Erosion control rock or stone may be sized appropriately to slow water flow and must be of a natural tone or white in color.

1.3) Where practical, erosion control rock or stone should not abut sod and should be separated from sod by a mulch area and/or a bed edging conforming to the requirements of these Residential Design Guidelines.

1.4) ARC reserves the right, in its discretion and on a case-by-case basis, to require use of river rocks as erosion control stone when (1) such erosion control stone is placed at a location where appearance thereof becomes a significant factor; and (2) river rocks not exceeding 6 inches in size are sufficient to control run-off and prevent erosion at such location.

[Supporting materials to MRF: Plot plan, Picture, and Material list.](#)

15. Holiday Decorations

(a) General:

Holiday decorations are displays erected on a seasonal basis for religious observances, national/state observances and cultural observances and are not intended to be permanent, and shall not contain advertising. No approval is required for holiday decorations.

“Year-end holiday season” is defined as the time period running from November 15 and January 15. Seasonal statues, artifacts, lighting and other decorative landscaping items may be installed and operated within this period. All such decorative landscaping items as defined above must be removed by January 15.

For holidays that are observed during the rest of the year, decorations will be limited to four (4) days prior to, and three (3) days following the holiday.

(b) The following guidelines for Holiday Decorations apply:

- 1) All decorations must be placed in mulched or concreted portions on the homeowner's lot so as not to impede lawn maintenance activities.
- 2) No homeowner decorations are allowed in common areas.
- 3) The combined number of holiday decorations in the FPA is limited by the builder model category of your home. Passports can have up to four (4) holiday decorations, Expeditions can have up to five (5), and Pinnacles can have up to six (6).
- 4) The combined number of holiday decorations in the RPA is limited by the builder model category of your home. Passports can have up to four (4) holiday decorations, Expeditions can have up to five (5), and Pinnacles can have up to six (6).
- 5) Placement must be at least 3-feet from the public sidewalk or 3-feet from the curb where no sidewalk exists.
- 6) Cords shall never be located over public sidewalks.
- 7) Lights may be placed on lot trees.
- 8) Decorative lighting may be placed on the house, but cannot be higher than the eaves of the house.
- 9) Statues and artifacts may not be more than 6-feet in height.
- 10) No outside audio shall be allowed.
- 11) No computer controlled light shows shall be allowed.
- 12) Inflatable decorations of any kind are not allowed.

Note: The ARC reserves the right to limit the number, size, style, quantity, and time duration, of all seasonal decorations.

16. Hoses (Fast Track Option)

Hoses may either be attached to a wall mounted reel or a ground mounted caddy. The caddy may be placed on an earth-tone colored slab or paver pad with dimensions that fit within the 18-inch mulch bed.

17. Irrigation Systems (Fast Track Option)

Irrigation systems may be installed provided they comply with all governmental regulations concerning their operation. In-ground systems which utilize an irrigation meter must bury all distribution tubing and ensure that pop-up spray nozzles do not interfere with lawn cutting.

The distribution tubing for hose bibb systems must be contained within the mulch beds and must be concealed by the mulch.

Backflow prevention valves installed in the front yard must be concealed with natural-colored synthetic rocks or evergreen plantings and be included in mulch beds. When a backflow prevention valve is installed in the garage, and a drain line is required, the pipe may be visible on the side of the house. The water discharge must be directed to a mulch area.

Watering of lawns between houses is not permitted. A house on a corner lot or with more than 15-feet between homes may water the lawn and plants on the side yard. Watering either on or across impervious surfaces is not permitted.

18. Landscape Beds

Creation of a new/mulch bed is permitted in the yard where space permits. It is required for homeowners to keep lawn maintenance access points (a minimum of 3-foot wide turf adjacent to any mulched beds).

Plantings may be used on the sides of the home inside a continuous mulched strip no greater than 18-inches wide running adjacent to the foundation but not in the swale.

[Supporting materials to MRF: Plot plan, Picture, Plant list/materials, Contractor, and Plans.](#)

19. Lighting (Landscape)

(a) General:

Low voltage/solar light fixtures and decorative lighting are allowed within the mulched areas of FPA or RPA of residential lots only.

(b) Pathway Lighting: (Fast Track Option)

Low voltage/solar light fixtures may be used in the FPA or RPA for low-level pathway lighting. Lights along a pathway, within 6-inches of the pathway, and at least 4-feet apart. Low voltage/solar lights should not be installed along driveways unless there is a special need and prior approval has been granted through the normal ARC approval process. Randomly located lights in mulch beds are not allowed.

(c) Landscape Lights and Accent Lighting: (NOT a Fast Track Option)

Low voltage/solar light fixtures used for landscape accent lighting may be used in the FPA. The maximum total number of combined landscape accent lights allowed in the FPA of the home is limited by the builder model category of your home; Passports can have up to three (3) lights, Expeditions can have up to four (4), and Pinnacles can have up to five (5).

- 1) Light fixtures may not exceed 18-inches in height, shall conform to the architectural character of the home, and will be subject to approval by the ARC.
- 2) In special circumstances, the ARC may allow more than the maximum number of light fixtures. A lighting layout plan must be submitted to the ARC for review and approval.
- 3) Light fixtures shall be located and aimed carefully so that they do not constitute a nuisance or hazard to any homeowner or neighboring homeowner.
- 4) Junction boxes shall be placed below grade or screened to minimize daytime visibility of hardware.
- 5) No colored or multi-colored lights or changing color lights are permitted except at holiday times as defined in Section 15- Holiday Decorations above.

[Supporting materials to MRF: Plot plan, Picture, Contractor, and Material list.](#)

20. Mailbox

(a) Landscaping:

The area around your mailbox may be mulched with the following guidelines:

- 1) The mulched area should go from curb to sidewalk or up to 30-inches past the mailbox if no sidewalk exists. The width from side to side is not to exceed 36-inches total.
- 2) The mulch must be an approved mulch.
- 3) Plants can be planted in this mulched area provided they are kept within the mulched area and must be maintained not to exceed 36-inches at mature height. Mailboxes and house numbers on the boxes are not to be obstructed by vegetation.

Landscaping surrounding mailbox from curb to sidewalk (shown below):



Homeowner must provide mulch and plant maintenance.

(b) Replacement:

Replacement of a mailbox must be of a similar size, color and style to original.

[Supporting materials to MRF: Plot plan, Picture, Material list, and Contractor.](#)

21. Patios and Decks

(a) General:

Patios and decks should be designed in harmony with the architecture of the home and match as to materials and color as offered by Del Webb. No deck or patio will be constructed that is in conflict with the drainage pattern as established for the lot. Patios and Decks must be adjacent to the house.

No extensions or modifications of decks or patios, as constructed by the developer shall be permitted without prior written approval of the ARC, and no extension or modification shall be approved if it is determined to have a material adverse impact upon neighboring properties and/or the community. The size of decks and patios when added to the area of other exterior options, shall not exceed the maximum square footage of all options as designed and offered by Del Webb for that model house. See the document “*Home Model Exterior Options*” for additional options for each model home which can be found on OCA documents under Architectural Review. This recognizes that the original community plan maximizes the size of the homes impervious surfaces, drainage, view corridors and esthetics given high-density zoning.

The ARC will consider the available impervious surface allowed on an individual lot when reviewing a modification request for the increase in the size of a patio or deck.

The patio or deck must be within the RPA, and be contiguous with the original patio, or foundation of the rear portion of the house. The ARC reserves the right to limit the size, color, and location of patios and decks.

For information on patio or deck railings, see section D.10: Fencing, Privacy Screens, and Railings.

(b) Decks:

All handrails, rim joists, stringers, spindles and any other vertical member shall be constructed of cedar, primed and stained to match the trim color of the home; or of vinyl; or of black metal. Decking, flooring, and understructure can be constructed out of approved chemically pressure treated lumber or composite / engineered materials. Decks are not allowed at ground level.

(c) Patios:

Patios may be concrete, pavers (grey in color), or brick or interlocking pavers (either grey or earth tone in color).

Deck Maintenance:

- (a) For waterproofing without color change, a clear deck sealer is allowed to protect decks. This should be applied to the top of the floor decking, top and sides of the deck rail components and all sides of the deck support posts including braces.
- (b) For waterproofing with color change, semi-transparent stains are allowed to protect decks. No solid stains or paint are permitted. These stains should be applied to the same surfaces as specified in (a) above.

[Supporting materials to MRF: Plot plan, Dimensional plan, Construction details and material list, plat map, Photographs of existing home, and Contractor.](#)

22. Pergolas, Trellises, & Arbors

(a) General:

All pergolas, trellises, and arbors will be constructed of vinyl, aluminum, cedar, pressure treated lumber, or composite/engineered materials and be painted white or finished to match the trim color, home color, or stained to match a deck, or have a clear sealant applied. Trellises and arbors can also be made of black painted or coated metal. Any wood pergolas, trellises or arbors must be treated with stain or sealant and that should be specified in the application.

Structures must be constructed within the RPA of the lot and may not exceed 40% of the width of the home or 18-feet, whichever is less. A maximum size exception is allowed for the original patio width.

(b) Pergola:

A pergola is a structure over a patio forming a shaded walkway, passageway, or sitting area of vertical posts or pillars that usually support crossbeams and a sturdy open lattice, often upon which woody vines are trained. See example below:



Pergolas must be structurally sound and anchored in accordance with local codes. Knee bracing or cross-bracing (x-bracing) shall not be utilized on any side of the structure, however corner bracing above 7-foot in height is allowed. The lowest member of framing of a pergola may not exceed the eave height of the home. Pergolas can be attached to the home, subject to the provision that it could void the home warranty. The ARC may require homeowners to obtain a building permit (if applicable) from the City of Durham.

For safety concerns, a wood railing may be attached to a pergola on a side that has a drop-off of more than 8-inches to the ground. The pergola railing must be located no more than 12-inches from the edge of the patio with the drop-off.

Pergolas may have shade protection provided by adjustable options such as louvered roof systems and retractable fabric canopies or shades. These options must allow for rain and debris to pass through when in the open position. Static options such as plastic panels or fixed fabric are not allowed. The movable options can be either manual or motorized. When not in use, shade protection must be in the open position.

Lattice is permitted as part of the pergola structure if it is installed only on the side of the pergola which is parallel to the side of the home; it cannot be installed along the back of the pergola. The lattice must match the material and color of the overall structure, in particular the lattice must be painted white or finished to match the trim

color, home color, or stained to match a deck, or have a clear sealant applied same as the pergola structure. The lattice can go all the way to the ground and cannot exceed 8' in height from the ground.

(c) Trellis:

A trellis is an architectural structure, usually made from an open framework or lattice of interwoven or intersecting pieces of wood, bamboo or metal that is normally made to support and display climbing plants, especially shrubs. See example below.



One or more trellises may be installed to shield a patio if approved by the ARC. Trellises used to screen patios that have a height extending to the eaves of the home may have a maximum depth of the patio. Applications for trellises which do not extend to the eave (lowest roof overhang) height of the home shall be reviewed on a case-by case basis to determine allowable width and configuration. Each trellis must be designed to support plants or vine growth and thereafter maintained with plants or vines growing on it, and remain plumb, level, and structurally sound. The intent of the RDG is that trellises may not be used as substitutes for fences. A trellis may be installed outside the Private Area if screening a lanai but must abut the foundation. Trellises may be placed in mulched beds along the side of homes that face a street, or on side yard beds where 15-feet or more exists between buildings.

Trellises located in the FPA mulched area may have a height extending to the eaves of the home, a maximum width of no greater than 8-feet and a depth no greater than 4-inches if approved by the ARC. The 8-foot width is applicable either in a single trellis or the combined width of multiple trellises (with a maximum of three (3) trellises). Trellises should consist of the frame and lattice used to hold plantings. No additional structures such as shelves should be attached to the trellis. Pots, sculptures and other decorative items should not be placed on or attached to a trellis.

(d) Arbor:

Arbors and pergolas are similar structures and sometimes the terms can be used interchangeably. For purposes of this guideline, a pergola is a large, open structure, which may have integral privacy screening and primarily provides sun screening over a patio. An arbor is smaller in overall size and may be designed to support plants or vines. In addition, an arbor may also be used to provide sun screening over the windows of a single room in the rear of a house. Regardless of style, arbors may not exceed 8' in height and 5' in depth. Arbors over rear windows may not be longer than the width of the room being screened. Arbors are not required to be over a patio. Also, posts supporting an arbor must not be located in a turf area. As arbor designs can be different, approval rests with ARC. See examples below:



[Supporting materials to MRF: Plot plan, Picture, Material list, Contractor, and Construction Plans.](#)

23. Play Sets

Swing sets and other non-portable play sets are not permitted. All portable play and garden equipment must be stored within the home or garage when not in active use.

24. Screening (Equipment)

(a) General:

All screens, whether landscape structures, fences, or plant materials, should be located a minimum of 2-feet from the equipment to allow for adequate air circulation around the equipment, but may not encroach on a neighboring property.

(b) Manufactured Screening:

Any screening of ground-mounted equipment shall be of a material and color compatible with the design of the residence, provided however, in no event shall plastic sheeting be used for screening. Screening must be in the RPA.

(c) Landscape Screening:

See section 25 on Shrubs below.

[Supporting materials to MRF: Plot plan, Picture, and Material list.](#)

25. Shrubs

- (a) Dead or diseased shrubs must be removed and replaced. The new shrub must be at a minimum 3-gallon size for foundation plantings and at a minimum 1-gallon size for all others. For planting distances between shrubs, the mature spread needs to be taken into account.
- (b) Shrubs may be planted in newly established landscaping beds in the front and rear of the house after a modification request has been submitted and approved by the ARC.
- (c) Replacement or new shrubs facing the street or used to screen air conditioning units and other utility boxes must be of the evergreen variety.
 - 1) The plantings should be maintained at least as high as the utility box/AC unit but no more than 12-inches higher.
 - 2) The distance between the planting and the utility box/AC unit must allow access for maintenance.
 - 3) Shrubs under windows shall be maintained no higher than 18-inches above the window bottom.
 - 4) To facilitate mowing and edging, all plantings must remain a minimum of 6-inches inside the mulched area.
- (d) Perennials may be used on the side of the house to screen utility boxes.

[Supporting materials to MRF: Plot plan, Picture, Material list, and Contractor.](#)

26. Side Yard Alternate Landscaping

If and only if grass cannot survive between homes due to shade from structures, the homeowners may choose one of the three options provided below. If and only if there is a conflict between this section and another section of the RDGs, this section supersedes any conflicts only under the specific circumstances described herein. Before any of the provided options can be approved, the homeowners must provide the following:

1. A signed letter from a NC licensed Landscape firm that verifies that grass is not appropriate in the designated location. The letter must indicate whether the location is inappropriate due to lack of sun, or due to erosion, that the area has sufficient drainage to prevent standing water, and must include the NC license number of the landscape professional. If the issue is erosion, the letter must also indicate whether the option chosen will likely prevent future erosion.
2. An acknowledgment by both homeowners adjacent to the area that installation will be at the expense of the homeowners and that the option will be installed in the entire area between homes.
3. An acknowledgement by both homeowners that the installation and future maintenance of this area will be at the expense of the homeowners, except if maintaining the existing 18" mulch strip (Option 3). In that case, the mulch can be replaced/refreshed in the community mulch program.
4. Any option chosen must include the appropriate metal edging as described in the RDGs section D.9 to prevent the mulch or stone from migrating onto the adjacent turf.
5. Both homeowners must sign the Maintenance and Indemnification Agreement and include it with the ARC Modification request. It must be filed with the Durham County Register of Deeds prior to commencing with the project. The Maintenance Indemnification Agreement can be found on OCA under Architectural Review Documents.
6. All pop-ups must be extended out of the area to be covered by Options 1, 2 and 3 so that the water will exit into turf sod.

Option 1:

Installation of currently approved mulch type from foundation to foundation. Future maintenance, replacement or addition will be entirely the expense of the homeowners. The mulch can be installed from the front corners of the homes affected to the back corner of whichever home is less deep, and perpendicular to the foundations. Side yard plantings are still allowed within an 18" strip bordering the house. There must be 3' unobstructed access in the center (i.e. no plantings, decor, statuary, or structures).

Option 2:

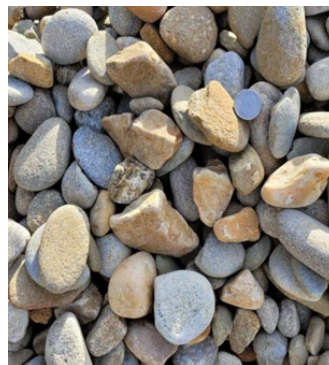
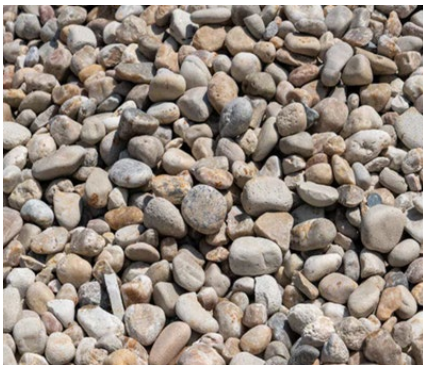
Medium sized (1-3") natural colored river rock from foundation to foundation. All white or all black stones are not acceptable. Future maintenance, replacement or addition will be at the expense of the homeowners. The river rock can be installed from the front corners of the homes affected to the back corner of whichever home is less deep, and perpendicular to the foundations. A row of natural-colored pavers or steppingstones to be used as a pathway can be embedded in the center of the area. Some areas suffering from persistent erosion may require larger stones such as rip rap, which shall match the type of stone used adjacently. There must be 3' unobstructed access in the middle (i.e. no

plantings, decor, statuary, or structures). This option requires the installation of an edging strip between stone and turf, and between stone and mulch.

Option 3:

The existing mulch strip to be maintained adjacent to both foundations with an approved edging strip. Between the edging strips there must be at least 3' wide area of Medium sized (1-3") natural colored river rock. All white or all black stones are not acceptable. Future maintenance of the edging and the stone will be at the expense of the homeowners. However, the mulch may be refreshed or replaced as a part of the annual community mulch program. The rock can be installed from the front corners of the homes affected to the back corner of whichever home is less deep, and perpendicular to the foundations. A row of natural-colored pavers or steppingstones to be used as a pathway can be embedded in the center of the area. Some areas suffering from persistent erosion may require larger stones such as rip rap, which shall match the type of stone used adjacently. There must be 3' unobstructed access in the middle (i.e. no plantings, decor, statuary, or structures). This option requires the installation of an edging strip between stone and turf, and between stone and mulch.

Samples of river rock:



[Supporting materials to MRF: Plot plan, Pictures, Material list, Signed Maintenance Indemnification Agreement](#)

27. Spas

All spa equipment shall be screened from street view and view from neighboring properties with plant or manufactured materials of adequate density. Spas must be constructed entirely within the RPA, placed on a concrete pad and be as close to the rear of house as possible. All spas shall be fenced for safety as required by applicable law and must be installed according to City of Durham ordinances. The ARC may require additional plant materials to be planted to screen spas from neighboring properties.

Use of spas in a lanai or screened porch is discouraged due to their susceptibility to mold.

No spa can be drained onto open space or any other property.

[Supporting materials to MRF: Plot plan, Picture, Material list, and screening material list](#)

28. Trees

(a) **Street Trees:** (Trees closest to the sidewalk or street)

Street tree requirements were established to lessen the environmental impact resulting from the clear cutting necessary to permit the construction of our Carolina Arbors neighborhood. For each property, a required number of street trees was established, and the number is documented within the property's Certificate of Occupancy.

A homeowner may not cut down or remove any tree without the ARC approval. All dead or diseased trees must be removed and replaced (replacement is optional for non-street trees). In addition, street trees may be replaced if the existing tree is unappealing, too large for the space, or if the tree root system endangers the utilities. All street trees selected must have a minimum mature height of at least 20-feet. Replacement street trees must be a minimum of 8-feet in height and a 2.5-inch caliper (trunk diameter). Street and rear yard deciduous and evergreen trees should have a maximum mature height that does not exceed 60-feet and a spread that does not exceed 50-feet after pruning. Replacement street trees must be planted in the same location as the original tree, or they can be moved laterally a few feet, if needed, to avoid utilities. The new location must be the same distance from the sidewalk or curb. Relocated trees must remain within the FPA and their new location must be approved by ARC. The original street tree location must be leveled and resodded with Hybrid Bermuda sod.

A homeowner may replace their street tree with any of the following trees listed below, regardless of which type of tree they had planted originally:

- | | |
|------------------------------|--|
| ▪ Red Maple | ▪ Nuttal Oak |
| ▪ Bowhall Maple | ▪ Cherrybark Oak |
| ▪ Brandywine Maple | ▪ Willow Oak |
| ▪ Scanlon Maple | ▪ Scarlet Oak |
| ▪ Legacy Sugar Maple | ▪ Southern Red Oak |
| ▪ Autumn Blaze Red Maple | ▪ Everclear Elm |
| ▪ Armstrong Maple | ▪ Bosque Elm |
| ▪ Green Mountain Sugar Maple | ▪ Columnar Chinese Elm |
| ▪ Redpointe Maple | ▪ Black Gum |
| ▪ Chinese Elm | ▪ Tulip Poplar (Little Volunteer only) |
| ▪ Columnar European Hornbeam | ▪ Chinese Pistache (male only) |
| ▪ Northern Red Oak | |

(b) **Non-Street Trees:**

A homeowner must cut down or remove any dead or diseased non-street tree in a timely manner. This type of removal does not require ARC approval. Rear yard deciduous and evergreen trees should have a maximum mature height that does not exceed 60-foot and a spread that does not exceed 50-feet. Replacing a non-street tree

with the same tree species is a Fast Track option while replacement with a different species of tree does require ARC approval. Replacement of non-street trees is not required, but if not replaced the area must be filled, leveled and covered with sod, or mulch if utilized as a planter bed, as appropriate.

Pruning of trees must be in compliance with nursery standards. No tree topping.

Replacement of a dead/diseased tree located in an easement is permitted if the original developer installed tree was there at the time the homeowner purchased the property. The cost of replacing the dead/diseased tree is the homeowner's responsibility.

Flowers around street trees are allowed as long as these plantings are within the established mulch bed of these trees. Expansion of the existing mulch beds around street trees is not allowed without prior written approval of the ARC.

Arborvitae will be treated as a shrub (not a tree)

[Supporting materials to MRF: Plot plan with dimension from house and property line, and Picture.](#)

(Fast Track Option for same species replacement)

Any tree that is dead or diseased must be removed and may be replaced with the same species.

29. Walls

(a) General:

There are 3 types of walls identified and defined in this guideline: Landscape, Retaining, and Sitting.

A landscape wall is primarily used to provide a decorative design element to an area. Retaining walls are used in locations where the slope of the ground requires a wall to restrain the movement of soil and mulch. A sitting wall is generally used to frame the space and provide additional seating. Specific requirements for each of these walls are listed below. All modification requests must include a plot plan showing the wall location and provide dimensions.

(b) Landscape Walls:

- 1) Must be within the Rear Private Area (RPA).
- 2) May not be greater than 36 inches in height.
- 3) May be straight or curved.

- 4) Wall materials must be brick, cultured or natural stone or decorative masonry block, and of a color compatible with the appearance of the home.
- 5) May not alter existing drainage patterns, may not impact view corridors, and may not restrict access for lawn maintenance.

See example below:



(c) Retaining Walls:

- 1) May be located in the Front Private Area (FPA) or Rear Private Area (RPA).
- 2) Must not be further than 18 inches from the side wall of the house.
- 3) Must be adjacent to the house, porch, or patio.
- 4) The top of the wall must be level and no higher than the top of the foundation.
- 5) No portion may be within 3 feet from the front sidewalk or in front of a street tree.
- 6) Free standing beds are not allowed; they must be adjacent to the house.
- 7) Wall materials must be brick, cultured or natural stone or decorative masonry block, and of a color compatible with the appearance of the home.
- 8) May not alter drainage patterns, may not impact view corridors, and may not restrict access for lawn maintenance.

See example below:



(d) Sitting Walls:

- 1) Must be within the Rear Private Area (RPA).
- 2) Must be adjacent to or placed on a rear patio or porch.
- 3) Wall materials must be brick, cultured or natural stone or decorative masonry block, and of a color compatible with the appearance of the home.
- 4) May not alter drainage patterns, may not impact view corridors, and may not restrict access for lawn maintenance.

See examples of sitting walls below:



[Supporting materials to MRF: Plot plan, Picture, Material list, Contractor, and Construction Plans.](#)

E. Appeal Process and Variances

1. Modification Request Approval / Denial

To ensure compliance with Carolina Arbors RDG, the ARC reviews all structural and landscaping modification requests. The ARC will provide a written response to the homeowner's original Modification Request Form that indicates the approval or denial of the proposed property alterations. If the request is denied, the reason for the denial will be provided. The homeowner may choose to:

- (a) Resubmit the modification request to ARC with changes or additional information
or
- (b) Appeal an ARC denial to the HOA Board of Directors

2. Instructions for Resubmittal

When an ARC denial is received by the homeowner, they can choose to MODIFY their original submission by changing the details that caused the denial or include needed information that was not included with the original submission. The changed Modification Request Form (MRF) should be re-submitted to ARC for another review.

3. Instructions for Appeal of ARC Denial

The homeowner may NOT file an appeal if their original submission was determined to be incomplete and lacked sufficient information required for ARC to render a final decision. In that case, the homeowner shall be required to re-submit their application to ARC with the required necessary information to receive a final decision from ARC. After submitting the required complete submittal package, and ARC's decision denies their modification request, they may then file an appeal to the Board.

The homeowner may appeal the ARC's denial to the HOA Board by documenting the reason the homeowner believes the ARC decision is in error or why the subject guideline(s) should not apply to their project and submit to the HOA. The appeal must be submitted within 30 calendar days from the date of the ARC's decision and must include: an appeal letter from homeowner about why they believe the ARC decision is in error or why the subject guideline(s) should not apply in this unique submission. Do not include copies of the original submission as this will be provided to the Board by Community Management.

Community Management will supply the following to the Board:

- (a) Original Modification Request Form as submitted.

(b) Copy of denial letter and date of denial

Community Management will notify the ARC chair of the appeal.

4. HOA Board Decisions

The appeal packet will be presented to the HOA Board for review and final decision.

The decision of the HOA Board may result in a waiving of the RDG to approve the submission, or denying the submission. The HOA Board may consult with the ARC, the homeowner, or subject matter experts as part of their development of a decision.

5. Notification of Board Decision

The management company will advise the homeowner of the HOA Board's decision by USPS mail or electronically by email, if an email address is provided on the request form, within five (5) business days of the decision. In addition, the Board will document and communicate in writing the decision and reasons therefore, to the ARC.

6. Non-Liability for Approval of Plans

Article IX Section 9.6 (g) of the CC&R contains a disclaimer by Del Webb, the Homeowner's Association, and the Architectural Review Committee of liability or responsibility for the approval of plans and specifications contained in any request by a Homeowner. PRIOR TO SUBMITTING PLANS OR INFORMATION FOR REVIEW, THE APPLICANT SHOULD READ AND UNDERSTAND THIS DISCLAIMER. IF YOU DO NOT UNDERSTAND IT, PLEASE ASK A REPRESENTATIVE OF THE HOA MANAGEMENT COMPANY TO EXPLAIN IT.

F. Enforcement and Compliance

1. Enforcement of Instruments

Article IV of the CC&R describes the scope of authority of the Homeowner's Association (HOA), including the review and determination of alleged violations by homeowners and residents, execution of certain remedies, and recommendations to the Board of Directors of the HOA for further action. The HOA may execute certain remedies as provided for in Article IV 4.3 of the CC&R.

2. Non-compliance/Violations by Homeowner

The Board of Directors will handle violations as described below:

Non-compliance with these RDG shall result in such enforcement procedures as are allowed in Article IV of the CC&R including but not limited to fines as allowed by HOA policy #14 (Enforcement Fines). In addition, for example, Article IV, section 4.3 of the CC&R describes the HOA's right to require the homeowner to remedy any non-compliance. After notice of the violation, and an opportunity for a hearing, the homeowner shall have 30 days to complete the remedy. If the remedy cannot be performed within 30 days, the HOA shall take the time estimated for taking the remedial action into consideration. If homeowner has not complied within 30 days, or the time period otherwise designated by the HOA if applicable, a duly authorized representative of the HOA shall have the right to enter the property to perform the necessary work to bring the property into compliance. All costs incurred by the HOA to bring the non-complying homeowner into compliance, including the cost of the work and interest, shall be charged to the homeowner as a Benefited Assessment. Any amounts invoiced to the homeowner pursuant to this paragraph or pursuant to the CC&R as Benefited Assessments shall be due and payable within 30 days of receipt of such invoice by homeowner. The failure of the homeowner to pay a Benefited Assessment levied against homeowner is a default and could subject homeowner to suspension of his voting rights and rights to use the common area(s) and the recreation center and such additional remedies as provided in the CC&R. The decision to suspend a homeowner/member's rights to use such facilities will be made by the Board of Directors of the HOA.

3. Reporting Non-compliance

If a homeowner wishes to report a violation they can go to OCA and under the Community header click on Contact Management/Committees and then click on "Report a Property Violation" (submissions are confidential).

When a homeowner notifies management of a potential violation, management will investigate. The name of the reporting homeowner(s) will be held in strict confidence. The investigation and determination of a violation will also be held in strict confidence.

4. Inspection Post-completion of Modification

The HOA has been directed by the Board of Directors to conduct on-site inspections to assure compliance with approved submittals. Homeowners are asked to cooperate during such inspections. At a minimum, the homeowner is asked to notify Homeowner's Association within 30 days of the completion of the project.

5. Authorizations

These Residential Design Guidelines (RDG) are to be adopted by the Board of Directors of the Carolina Arbors by Del Webb Homeowner's Association, Inc. The RDG may be amended from time to time by the Board of Directors.

MEMBERS OF THE BOARD OF DIRECTORS OF CAROLINA ARBORS BY DEL WEBB HOMEOWNER'S ASSOCIATION, INC.

President:	(s) _____	(p) _____
Vice-President:	(s) _____	(p) _____
Member:	(s) _____	(p) _____
Member:	(s) _____	(p) _____
Member:	(s) _____	(p) _____



Appendix A Modification Request Form

Box for Office Use Only

Version 3.2 October 2024

Received Date:

Request #:

By:

1) Homeowner Information

NAME: _____ ADDRESS: _____ Durham, NC 27703

PHONE: ____ - ____ - _____ EMAIL: _____ HOME MODEL: _____

2) Modification Request Detail *(Include as much detail as possible; cite specific section of Design Guidelines)*

ESTIMATED START DATE: ____ / ____ / ____ ESTIMATED COMPLETION DATE: ____ / ____ / ____

CONTRACTOR NAME: _____ PHONE #: ____ - ____ - ____

3) Checklist for Submission

Please attach details of request with any information applicable. If the necessary items are not included, or the reviewing entity cannot clearly understand the modification, the application will be returned to you for written clarification and therefore delayed. If you have any questions about the requirements, please refer to the Design Guidelines.

Design Plans w/ Dimensions *(required)*

☐

Plot Plan w/ Design & Location *(required)*

☐

Floor Plan for My Specific Home

☐

Elevation Drawing

☐

Samples or Pictures of Materials *(required)*

☐

Neighbor Signatures* *(required)*

☐

Pictures of Existing Area being altered *(required)*

☐

Permits may be required for your project. Please consult with the City of Durham to determine whether it is necessary. A permit can typically be obtained after ARC approval.

4) Acknowledgement & Signature

Approval will be granted contingent upon the "Terms and Conditions" on Page 2 of this form. Applicants' signature below indicates agreement with the Terms and Conditions cited above. Approval Notification will be sent by email if listed above; otherwise, it will be printed for pickup at Piedmont Hall.

HOMEOWNER SIGNATURE: _____ SUBMISSION DATE: ____ / ____ / ____

5) Neighbor Signatures & Address *(Use back of form if more room is necessary)*

1	_____	2	_____
Name	Address	Name	Address
3	_____	4	_____
Name	Address	Name	Address

*Per the Board of Directors, all adjacent or impacted neighbors must be asked to sign acknowledgement, not approval, of this application. It must be noted on this application if a neighbor refuses to sign. Not signing does not mean the application is denied. Neighbors who have concerns should contact the Association Office.



Appendix A (cont.)
Modification Request Form
Terms and Conditions

The signature on the previous page represents my agreement to the terms and conditions cited below:

1. The applicant understands that this approval action does not relieve you from any Covenant or Design Guidelines requirements. Additionally, the applicant understands that work is not to commence on their project until the applicant receives written (either email or printed) approval to proceed.
2. The applicant agrees to conform to the specifications for the modification as submitted as well as any other terms and conditions noted in the approved application.
3. No additional modification or deviation may be made without prior written approval from the Architectural Review Committee (ARC) on behalf of the Board of Directors (BOD). Any non-conforming request must be approved by the ARC and the BOD.
4. Should any permits be required by the City of Durham, the applicant agrees to obtain the necessary permits and submit the copies to the management office prior to commencing work on their project.
5. Any modification found not to be in compliance with the design modification submitted and the terms or conditions contained therein must be brought into compliance at the Homeowner's expense within 60 days of notification.
6. All rules and specifications must be followed in the architectural modification. Should the Homeowner not adhere to all requirements, the modification may be corrected or removed by the Association at the Homeowner's expense.
7. The Homeowner is responsible for the maintenance and upkeep of the modification, as well as any damage to common elements, Homeowner's property, or neighbor's property resulting from the installation of use or the modification.
8. Neither the HOA nor the ARC makes any guarantee on the warranty on the home or any other components of, or on the lot, after the modification. It is the responsibility of the Homeowner to verify warranties with any modification.
9. The applicant has three (3) months from the date of the approval letter to begin the approved modification and three (3) months to complete the approved modification once the work has begun.
10. Upon completion of the work approved, the applicant must contact the management office for inspection of this modification.
11. The request and attachments will be retained for Association records.
12. By submission of this Modification Request Form, Homeowner acknowledges and agrees that any approval is made solely based upon the scheme and plan of development and covenants and restrictions of Carolina Arbors by Del Webb HOA. Neither the HOA nor the ARC makes any representation as to federal, state, county or municipal regulations ordinances, and the Homeowner is independently responsible to ensure compliance with all building code, zoning, environmental or other law or ordinance applicable to the scope of this submission and subsequent construction of any improvements or modifications. Homeowner shall indemnify and hold the HOA, its officers, directors, agents, and committee members (specifically including the ARC), harmless from any and all liability arising as a result of any damage arising as a result of Homeowner's violation of any federal, state, county or municipal regulations or ordinances with respect to the improvements to be constructed per this submission. **Please submit the application to the community management office in person, by mail, or by email to ContactArbors@gmail.com.**